

LEGAL WRITING MANUAL



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Legal Writing Manual (Mangan)

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Licensing

A detailed breakdown of this resource's licensing can be found in [Back Matter/Detailed Licensing](#).

CHAPTER OVERVIEW

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1.1: Sources of Law and Court Systems

This chapter covers where our laws come from and how different types of laws have varying weights of importance. A large part of law school, and being a lawyer, is figuring out if there is a law that applies to a specific situation to tell us what the outcome in that situation should be. Before looking for laws that sound like they apply, however, you need to know in which sets of laws you should start looking.

One of the primary tenets of the American legal system is (supposed to be) that you can predict what the outcome will be in a given situation because you can look to past cases with similar facts and know that the same types of reasoning in those past cases will be used in the current situation.

Different Ways to Sort Legal Material

Mandatory Authority Versus Persuasive Authority

Mandatory authority refers to any law that a court in a particular jurisdiction must follow when trying to solve a legal problem. This will include the United States Constitution, the state Constitution, judicial decisions by the United States Supreme Court, judicial decisions made by higher courts in that court's jurisdiction, statutes enacted by the legislature, and regulations promulgated by administrative agencies that exercise authority over that jurisdiction. Most often in law school, you will be applying cases and statutes to hypothetical situations, so throughout this manual I will focus on those two types of law.

Persuasive authority, then, refers to any law or other material that a court *may* consider when trying to solve a legal problem. There are times when a particular jurisdiction does not have any statutes, cases, or other laws that address the legal issue, so a court can look outside its own jurisdiction for guidance about how to proceed. Other times, a jurisdiction considering changing its law will look to other jurisdictions to see how they are currently addressing a particular issue. Persuasive authority includes all laws and material from any place outside the jurisdiction, including state Constitutions, judicial opinions, statutes, and regulations.

Precedent and Stare Decisis

The United States follows the English common law system, which means, in very simplified terms, that judges create laws as they render decisions, and that future individuals and entities are bound by those decisions in the same way they would be if that law had been enacted as a statute. Several of your first-year courses come from this common law system, although the principles in some jurisdictions have been codified.

Legal precedent means past judicial decisions that a court must follow in the future; therefore, legal precedent is a type of mandatory authority. To determine whether the past case must be followed, the court and the parties will consider if (a) the material facts of the past case and the current situation are the same, and (b) the legal reasoning applied in the past case is applicable to the current situation. To preview what we will be learning about in later chapters and throughout this year, these are two of the most important skills that you will need to learn: how to determine material facts and how to apply legal reasoning to those material facts.

Stare decisis is Latin for “let the decision stand.” When there has been a decision on a past set of facts that is just like the set of facts currently before the court, then the court must hold that the same outcome should occur. Based on the description of precedent and stare decisis, it can feel like there is not a lot of room for people to disagree on whether a past case will apply. Either it does or it does not, right? Not so fast.

Courts, lawyers, and other participants in the legal system all have options in *how* they view material facts and legal reasoning. We can interpret a case to have a **narrow** holding, meaning that it only applies in a few specific situations, or we can interpret that same case to have a **broad** holding, meaning that it applies in lots of situations.

The primary tools you will use to decide *whether* a case applies to a current legal issue are analogy and distinction. While much of law school is spent using these tools, we will only briefly touch on them in this chapter. To **analogize** a past case to a current legal issue means to find the ways in which that case is similar to what is happening now. On the other hand, to **distinguish** a case means to find the ways in which that case is different from what is happening now. Once you analogize or distinguish the past cases, you can then argue that the court should rule a particular way based on your interpretation of how to apply those past cases in the current legal situation.

Primary Sources versus Secondary Sources

The sources of law that we have been discussing (Constitutions, statutes, regulations, cases) are all considered primary authority. To be considered **primary authority**, the material must be a type of law itself. However, there are also many materials that interpret, explain, and discuss laws, and these are called **secondary authority**. Examples of secondary authorities are American Law Reports (ALR), Restatements, encyclopedias, treatises, hornbooks, legal digests, textbooks, legal periodicals, and law review articles.

To use an analogy to explain, think about being in history class and studying the Declaration of Independence. The Declaration of Independence, in its cursive handwriting on yellowed parchment, is a primary source. Any reproductions of the specific words in the text would also be considered a primary source. If you want to find out how the words of the Declaration of Independence were used to influence the French Revolution, you could find a book in the library or a resource online that would discuss the Declaration of Independence and explains its influence on the French Revolution. That book is a secondary authority. It takes the words of the primary source and manipulates them to present an argument about a particular point of view.

In the same way that a book examining the Declaration of Independence is a secondary authority, materials that examine sources of law are types of secondary authority. These types of authority are excellent for starting your legal research and for gaining a foundational understanding because they provide an overview of the particular topic and are often presented in easier-to-understand terms than what you will find in cases. Your legal research professor will spend time showing you many resources that you can use.

However, it is important to always keep in mind that, no matter how recognized or brilliant a secondary authority is, you should only rely on it as persuasive authority to a court. Remember, secondary authority is not law, but only one person's interpretation of a law.

There are times when a court will adopt a secondary authority's point of view and make it into the law of that jurisdiction. At that point, however, mandatory authority is the case that adopted the language, and not the secondary authority. For example, take the Restatement Second of Torts. A Restatement is a secondary authority. However, if a Michigan court in the Michigan case Fowler v. Wells decides to adopt the definition of contributory negligence in the Restatement, then the definition that was in the Restatement is now the definition applied in Michigan. However, if in a future legal situation you wanted to rely on that contributory negligence definition, you would cite to Fowler v. Wells, not the Restatement.

How Much Weight to Give Different Legal Material

We have looked at different ways to sort legal material: mandatory versus persuasive, whether it's precedent or stare decisis, and primary versus secondary. Having ways to sort these things is all fine and well, but how does this actually play out when you are a lawyer writing to a court or a law student writing a legal document for a class?

Different types of authority have different weight depending on what the legal issue is and in what jurisdiction the legal issue has been brought. Mandatory authority in a particular jurisdiction is given more weight than persuasive authority. Precedent is given greater weight, and stare decisis is given greatest weight of all.

Primary authority in a particular jurisdiction is given more weight than secondary authority.

The primary authority, whether it be the Constitution, a statute, a regulation, or a case, must be relevant to the legal issue that is being considered. If the law does not have a connection to the legal issue at hand, then it has no weight at all.

Sources of Law: Federal System and State System

The United States has three branches of government: the Executive branch, the Legislative branch, and the Judicial branch. Each state within the United States also has a similar governmental setup. All three branches make laws; we often only think about law as being that handed down by judges, but there are far more sources of law than just cases.

Sources of Law

1. Constitution
2. Executive Branch
 - a. Executive orders
 - b. Administrative rules and regulations

3. Legislative Branch
 - a. Statutes
 - b. Codes
 - c. Ordinances
4. Judicial Branch
 - a. Case law/judge-made law
 - b. Procedural rules

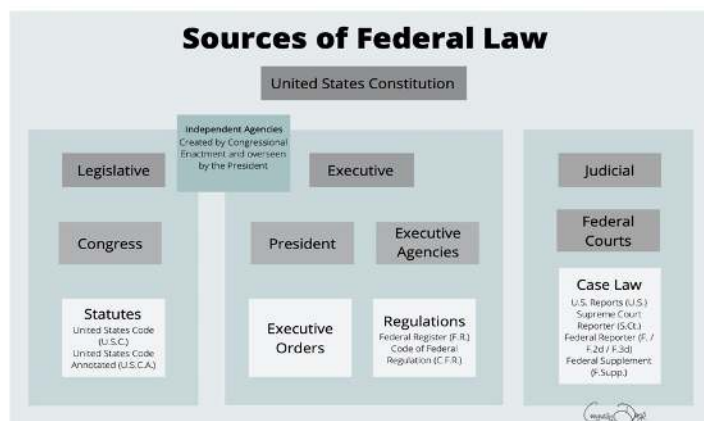
Not only do we have to keep track of different types of authority and multiple sources of law, we also have to remember the dual tracks of federal and state law. A legal issue that is rooted in federal law will rank weight of authorities differently than a legal issue that stems from state law.

The first two graphics and outlines below show from which branch different types of law are created and also provide information on what resource you can consult to locate that type of law. The first graphic and outline show sources of federal law. The second graphic and outline show sources of Georgia state law. Keep in mind that each state, commonwealth, and territory will have its own structure. No one structure is in use and you will have to check on the structure and system in place in the particular jurisdiction in which you are researching, writing, or working.

The third graphic and outline show the United States federal court hierarchy as an example of how different courts' opinions should be weighted. A highest court's judicial opinion will carry more weight than an intermediate appellate court, and a lower court's opinion will carry the least weight of all.

The fourth graphic shows how Georgia's counties are divided into three federal districts. The fifth graphic shows the hierarchy of courts in Georgia. Again, a highest court's judicial opinion will carry more weight than an intermediate appellate court, and a lower court's opinion will carry the least weight of all.

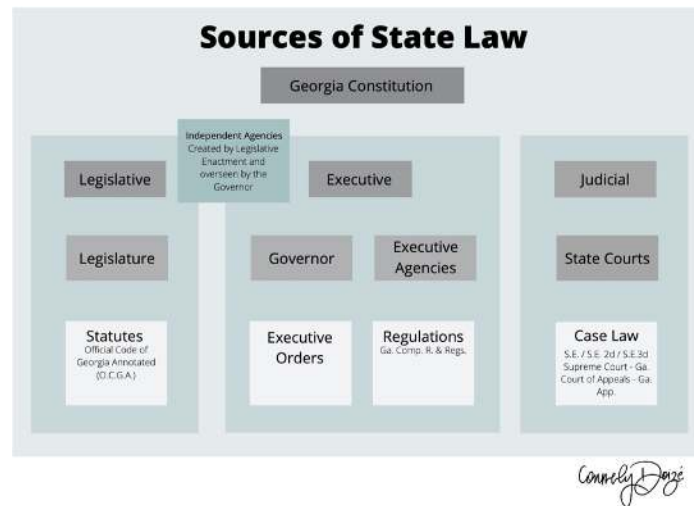
The sixth graphic summarizes how cases move from Georgia trial courts through the appellate courts, with the opinions issued by the appellate courts becoming law that you can research in either print or online databases.



Sources of Federal Law

- United States Constitution is the highest source of federal law
- Legislative Branch
 - Congress enacts statutes that are recorded in
 - United States Code (U.S.C.)
 - United States Code Annotated (U.S.C.A.)
- Independent Agencies: Created by Congressional Enactment and overseen by the President, so they straddle the Legislative and Executive Branches

- Executive Branch
 - President issues Executive Orders
 - Executive Agencies issue Regulations that are recorded in
 - Federal Register (F.R.)
 - Code of Federal Regulation (C.F.R.)
- Judicial Branch
 - Federal Courts make case law decisions that are written in
 - U.S. Reports (U.S.)
 - Supreme Court Reporter (S. Ct.)
 - Federal Reporter (F. / F.2d / F.3d)
 - Federal Supplement (F.Supp.)



Sources of State Law

- Georgia Constitution is the highest source of Georgia state law
- Legislative Branch
 - Legislature enacts statutes that are recorded in the Official Code of Georgia Annotated (O.C.G.A.).
- Independent Agencies: Created by Legislative Enactment and overseen by the Governor, so they straddle the Legislative and Executive Branches.
- Executive Branch
 - Governor issues Executive Orders
 - Executive Agencies issue Regulations that are written in Ga. Comp. R. & Regs.
- Judicial Branch
 - State Courts make case law decisions that are recorded in
 - S.E. / S.E. 2d / S.E. 3d
 - Supreme Court of Georgia- Ga.
 - Court of Appeals of Georgia- Ga. App.

United States Federal Court System Hierarchy

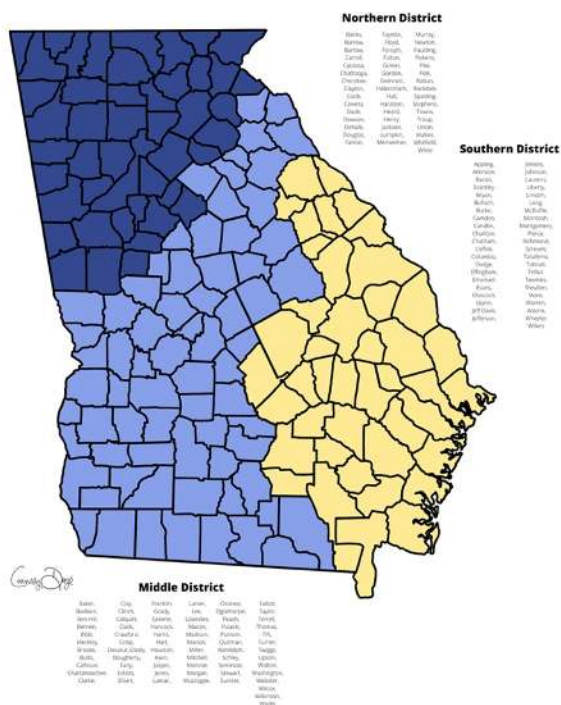
United States Supreme Court



United States Federal Court System Hierarchy

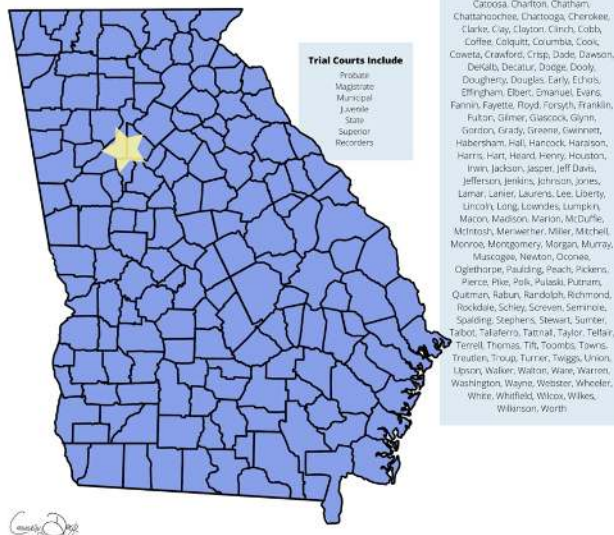
- The United States Supreme Court is the highest Court.
- There are thirteen Circuit Courts in the United States.
 - First Circuit: Maine, Massachusetts, New Hampshire, Puerto Rico, Rhode Island.
 - Second Circuit: Connecticut, New York, Vermont.
 - Third Circuit: Delaware, New Jersey, Pennsylvania, U.S. Virgin Islands.
 - Fourth Circuit: Maryland, North Carolina, South Carolina, Virginia, West Virginia.
 - Fifth Circuit: Louisiana, Mississippi, Texas.
 - Sixth Circuit: Kentucky, Michigan, Ohio, Tennessee.
 - Seventh Circuit: Illinois, Indiana, Wisconsin.
 - Eighth Circuit: Arkansas, Iowa, Minnesota, Missouri, Nebraska, North Dakota, South Dakota.
 - Ninth Circuit: Arizona, California, Idaho, Montana, Nevada, Oregon, Washington, Alaska, Northern Mariana Islands, Hawaii, Guam.
 - Tenth Circuit: Colorado, Kansas, New Mexico, Oklahoma, Utah, Wyoming.
 - Eleventh Circuit: Alabama, Georgia, Florida.
 - D.C. Circuit: District of Columbia.
 - Federal Circuit: Has nationwide jurisdiction over certain types of cases, including intellectual property, and administrative agencies' implementation of their regulations.

Federal Districts of Georgia



Georgia State Courts

Supreme Court of Georgia	Atlanta, GA	15 Judges
Court of Appeals of Georgia	Atlanta, GA	9 Justices

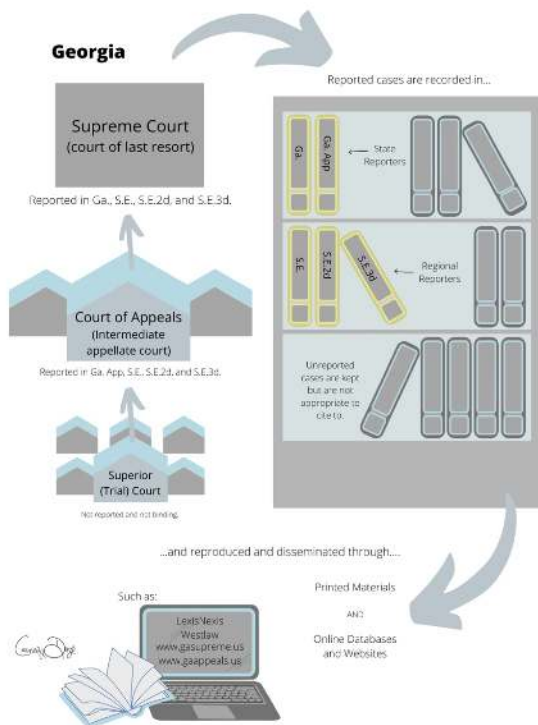


Trial Courts

Appling, Atkinson, Bacon, Baker, Baldwin, Bibb, Blount, Brantley, Brooks, Bryan, Bulloch, Burke, Butts, Calhoun, Camden, Candler, Carroll, Cass, Chatahoochee, Cherokee, Clayton, Coweta, Crawford, DeKalb, Douglas, Fayette, Forsyth, Fulton, Gilmer, Haralson, Heard, Henry, Houston, Jasper, Jones, Keith, Lamar, Laurens, Lee, Lincoln, Long, Lowndes, Lumpkin, Macon, Madison, Marion, McRae, McIntosh, Meriwether, Miller, Mitchell, Monroe, Montgomery, Morgan, Murray, Muscogee, Newton, Oconee, Oglethorpe, Paulding, Peach, Pickens, Pierce, Pike, Polk, Pulaski, Putnam, Quitman, Rabun, Randolph, Richmond, Rockdale, Schley, Screven, Seminole, Spalding, Stephens, Stewart, Sumter, Talbot, Taliaferro, Tattnall, Taylor, Telfair, Terrell, Thomas, Tift, Toombs, Towns, Treutlen, Troup, Turner, Twiggs, Union, Upson, Walker, Walton, Ware, Warren, Washington, Wayne, Webster, Wheeler, White, Whitfield, Wilcox, Wilkes, Wilkinson, Worth.

Georgia State Courts

- There are 159 counties in Georgia and each has its own trial-level courts, which includes a Superior Court, a Probate Court, a Magistrate Court, and a Juvenile Court. Other trial-level courts include Municipal, Juvenile, State, and Recorders Courts.
- Generally, appeals from county Superior Courts go to the Court of Appeals of Georgia, which is located in Atlanta, Georgia. There are certain types of cases, including but not limited to Constitutional issues, habeas corpus cases, and any case where a sentence of death could be imposed, that go directly to the Supreme Court of Georgia.
- The Supreme Court of Georgia is the court of last resort in Georgia and is also located in Atlanta, Georgia. In addition to cases over which the Supreme Court has exclusive appellate jurisdiction, including the types of cases named above, all appeals from the Court of Appeals of Georgia can be heard by the Supreme Court of Georgia if the Supreme Court grants the petition for a writ of certiorari to hear the case.



Conclusion

This chapter has given you a quick overview of where our laws come from and how we decide what type of legal material to rely on when formulating legal positions. Like with the material in the rest of the chapters in this manual, there is always more than can be learned and nuances that are not covered.

For Further Reading

Thomas O'Malley, Sources of Law: An Introduction To Legal Research And Writing 119-130 (1993).

Linda Edwards, Practical Case Analysis 2-4 (1st ed. 1996).

Steven M Barkan, Barbara A. Bintliff, Mary Whisner, Legal Research Illustrated, 1-9 (10th ed. 2015).

Tina M. Brooks & Beau Steenken, Sources of American Law: An Introduction to Legal Research (4th ed 2019).

David Romantz & Kathleen Elliot Vinson, Legal Analysis 3-18 (1st ed. 1998).

Nancy Schultz & Louis J. Sirico, Legal Writing and Other Lawyering Skills 9-21 (3d ed. 1998).

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1.2: Reading Cases

You are going to spend much of your time in law school reading cases. You will read to prepare for class, to research for papers, and to enhance your understanding of legal theory. An essential part of reading cases is breaking down a case into its pieces. By dissecting cases and understanding their parts, you will be equipped to create rules, analogize and distinguish cases, and predict and advocate for outcomes in factual scenarios. You will also detect patterns in judicial reasoning and see legal theory put into practice.

When you read a case, you should read with the goal of pulling information from the text. Ask yourself as you read what facts are relevant, what legal arguments are made, and how the facts and the legal arguments fit together. Determine what reasoning the court uses to reach its conclusion and see how the relevant facts and legal arguments fit into that reasoning. If you read passively, just scanning your eyes across the page and failing to engage with what you are reading, then you are wasting your time.

Below are definitions of the parts of a case to help you locate different pieces and to understand each component's role. I have placed them in the order in which you will typically encounter each one while reading an opinion. Be forewarned, however, that there is never a guarantee that each piece will be found in the same place every time. Judicial writing can, at times, leave a lot to be desired in terms of structure.

After you read a case, you will then want to record what you discovered through reading the case. This process is called briefing a case and it will be discussed in the next chapter. As you get to know your professors and what they focus on in class, you might need to shift your reading strategies to ensure you pull out the details that your professor emphasizes.

Caption: Also known as the header; tells you who the parties are in the case, which court the opinion comes from, the date the opinion was issued, and what the case citation is.

Citation: A citation is a unique set of numbers and letters that is assigned to that particular case. Think of it like a barcode. A citation for a case typically comes in this format: ### XXX ####. Back when you had to look up cases in bound book volumes, the XXX would tell you which reporter to look for the case in, and the numbers told you what volume of the case would be and page number the case would be. For instance, if a case citation was 123 S.E.2d 456, then that would mean you should look for the case in the 123rd volume of the second series of the Southeastern Reporter on page 456. You will learn more about this when learning how to "Bluebook." Don't let the upperclassmen fool you. The Bluebook is NOT scary. Once you get the knack of it, plan to tab some commonly used pages and make this dense piece of citation guidance much more approachable.

Facts, Substantive: Facts that the court has decided are relevant or material to its decision-making process. These facts usually include who the parties are, their relationship to each other, and facts that show what the legal dispute is about. A good, quick way to decide if a fact is relevant is to see if it answers part of the issue presented in some way. If the case is about whether there was a signed agreement, then facts surrounding a written document and signatures on the paper will likely be material. Whether the ink used to sign was pink will likely not be material.

Facts, procedural: Facts surrounding how the legal dispute got from its start to where it is now. These facts usually include when the harm occurred, when the lawsuit was filed, and what type of proceedings occurred before the court heard the case.

Issue: What the legal dispute is about. The issue may be presented in question form asking about what the outcome is when the legal rule is applied to the material facts. Identifying the issue makes following the legal arguments, reasoning, and holding easier because you will see what question the court has decided it needs to answer.

Rule Statement/Rule of Law: The legal rule, either from a statute, case, regulation, or some combination, that the court will use to address the legal question.

Standard of Review: This will tell you how much deference the appellate court must give the lower court's decision. We will spend more time on how to use a standard of review when we write briefs.

Reasoning: Also called rationale or application. The reasoning usually makes up the bulk of the opinion and is where the court "shows its work," or explains what sources of law and policy it used to reach the answer to the legal issue. In its reasoning, a court can use statutes, case law, other primary authorities, other secondary authorities, or public policy to support its thought process. If a court is going to rely on precedent or stare decisis, a court will show the precedent on which it is relying and explain why.

Holding: Outcome of the case when the legal rule is applied to the facts of the case. This outcome can serve as precedent in future cases. While this sounds simple, sometimes locating what the court has held can be challenging. “A holding consists of those propositions along the chosen decisions path or paths of reasoning that (1) are actually decided, (2) are based upon the facts of the case, and (3) lead to the judgment. If not a holding, a proposition stated in a case counts as dicta.” Michael Abramowicz and Maxwell Stearns, *Defining Dicta*, 57 Stan. L. Rev. 953, 1065 (March 2005).

Dicta: Anything else that is in the case other than the holding. Dicta does not have any precedential value. It can help you understand why the court made the holding that it did. Sometimes, people will argue over whether something is dicta or a holding. “Statements narrowly tailored to the facts have greater constraining force and approach the status of binding holding. Broader or more general statements have less constraining force and tend to approach dicta.” Andrew C. Michaels, *The Holding-Dictum Spectrum*, 70 Ark. L. Rev. 661, 664 (2017).

Disposition: The procedural outcome of the case. Cases can be **affirmed** (higher court says lower court got it right), **reversed** (higher court says lower court got it wrong and higher court is replacing lower court’s judgment with its own), **vacated** (judgment of the lower court is voided but not replaced with higher court’s judgment), or **remanded** (higher court sends the case back to the lower court to make a new decision in light of higher court’s decision). A case that is vacated will usually also be remanded. Cases can be **affirmed in part and reversed in part** (higher court says lower court got part of it right and part of it wrong).

Opinion, majority: Opinion that states the outcome that is controlling in the case. The holding in this case is the one that determines the legal dispute and that can be used as precedent in the future.

Opinion, concurring: Opinion in which the author agrees with the holding of the case but not with the reasoning that the majority used. If a casebook includes a concurring opinion, read it carefully because it is likely presenting a nuance in the law that your professor will want to discuss

Opinion, dissenting: Opinion in which the author does not agree with the holding of the case and wants to explain why the majority is wrong. If a casebook includes a dissenting opinion, read it carefully because it is likely presenting a counterpoint to the holding in the majority opinion that your professor will want to discuss.

Footnotes or Endnotes: Case citations or substantive comments that the author did not place in the main body of the opinion but that relate to the portion of the case where the footnote or endnote is flagged. You should always read the footnotes. If the author felt strongly enough about what is in the footnote to take the time to format the document to add the footnote, it is important. Further, when you see a footnote or endnote included for a case in one of your textbooks, you absolutely should read the footnote or endnote, because not only did the author of the opinion include it, but the textbook author also independently decided it was important

Conclusion

By practicing categorizing the different parts of a case as you read, you will be preparing yourself to brief cases and also how to locate the different components you will want to use for your legal analysis.

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1.3: Briefing Cases

Ah, the b-word. Second only to the o-word (outlining), no other class study tool seems to cause as much stress and confusion as creating an effective case brief. Keep in mind what you learned in the Reading Cases chapter. Reading a case and briefing a case are two actions that are intertwined and yet separate. The definitions stay the same, but what you do with the information changes. Creating a case brief allows you to take the information you learned when you read the case and then work with it to use your own words to explain what happened and why. In this chapter, we cover what you are supposed to include in a case brief, why it is important, and how to prepare each section.

To Include:

I. Case name

- a. Importance: Identifies the parties and is how you, your professor, and others will refer to this case
- b. Preparation: Write the case name exactly as it appears in the text that you are reading, even if not all parties are in the case name. If there is an et al. included, then write that. While this may not result in perfect Bluebook format, a correct case name is part of creating a correct legal citation, and you can start practicing now by observing how case names are written and then writing down what you observe.

II. Case citation

- a. Importance: Unique set of numbers and letters that is assigned to that particular case that acts like a case's barcode
- b. Preparation: Write the citation exactly as it appears in the text that you are reading. Make sure you properly place the periods, the spacing between characters, the underlining or italics, the commas, and the parentheses. Again, you are practicing how to form correct legal citations by observing the proper format and then copying down the format.

III. Legal issue(s)/question(s)

- a. Importance: What the legal dispute is about; why you are reading this case.
- b. Preparation: Write each legal issue in your own words for your brief. Do not copy directly from the textbook. Try to use 75 words or less. Drafting the legal issue that you identify in your case reading is excellent practice for how to draft your Question Presented/Issue Presented for memos and briefs. A case can have more than one legal issue. Often the cases in your textbooks have been edited to address just one issue. However, if there are multiple legal issues in a case that you are reading, then you should divide each issue out to address separately.

IV. Rule statement/ Rule of law

- a. Importance: The legal rule, either from a statute, case, regulation, or some combination, that the court will use to address the legal question.
- b. Preparation: Quote the rule statement from the case directly and include the page number on which you found the language. There will be a separate rule statement for each legal issue, so if you have multiple issues, be sure to find a rule for each. Breaking down and putting together rule statements are skills that we spend a lot of time practicing in this class. Taking the time to identify the rules in your readings and noticing how they break down will assist you in writing your assignments for legal writing.

V. Court's reasoning

- a. Importance: What steps the court used to decide how to answer the legal issue/question
- b. Write down the court's reasoning in your own words. If you absolutely must quote part of the reasoning, then do so, but be sure you indicate where in the opinion you found it. Because reasoning often involves multiple steps before reaching an answer, be sure to clearly label the steps of the process the court took. Using an outline or list format for this portion can be easier to read.

VI. Court's holding

- a. Importance: The court's answer to the legal issue using the facts of this particular situation

b. Preparation: Write down the court's holding in your own words. If you absolutely must quote part of the reasoning, then do so, but be sure you indicate where in the opinion you found it. Try to use 75 words or less. Drafting the legal issue that you identify in your case reading is excellent practice for how to draft your Brief Answer for memos. A case can have more than one holding. Often the cases in your textbooks have been edited to address just one issue and thus only has one holding. However, if there are multiple legal issues in a case that you are reading, then you should divide each issue out to address separately and should write out a separate holding for each issue.

VII. Relevant facts

- a. Importance: The facts that the court used to formulate its holding, meaning how it answered the legal issue through its reasoning
- b. Preparation: Write down these facts in your own words. I include the facts here because you often will not know which facts were relevant until you have identified the legal issue, the reasoning, and the holding. Using an outline or list format for this portion can be easier to read.

VIII. Procedural history

- a. Importance: The different steps the controversy has taken as it moves through the legal system
- b. Preparation: Write the history in your own words. Using an outline or list format for this portion can be easier to read.

IX. Disposition

- a. Importance: What happens with the case after this judicial opinion?
- b. Preparation: Write the disposition as concisely as possible. Often, you can write new "affirmed" or "reversed."

I recommend you write a lot of the brief in your own words rather than copying directly from the case. By working with and synthesizing the material you have read to come up with your own way of saying things, you benefit yourself in three ways. First, you remain an engaged learner by using active studying metacognitive strategies while you read your case. Second, when you get called on in class, it is easier to answer the professor's questions when you do not have to parse through someone else's words. Third, your case brief will serve as a more helpful tool when you create your outlines and when you are linking this case to other material you learn in the course.

As you get to know your professors, you might see that each chooses to focus on different aspects of cases. Adapt your case briefing to suit the type of questioning and reasoning your professor uses for that class. Chances are, if the professor repeatedly emphasizes a certain part of a case or a way to consider a case, that will be a skill that will be tested on your final exam.

Conclusion

By thoughtfully categorizing the different parts of a case into case briefs, you are building strength in being able to locate the different components you will want to use for your legal analysis.

For Further Reading

Nancy Schultz & Louis J. Sirico, Legal Writing and Other Lawyering Skills 23-35 (3d ed. 1998).

John C. Dernbach et. al., Practical Guide to Legal Writing and Legal Methods 23-41 (4th ed. 2010).

Gertrude Block, Effective Legal Writing 1-12 (5th ed. 1999).

Deborah A. Schmedemann & Christina L. Kunz, Synthesis: Legal Reading, Reasoning, and Communication 38-44 (5th ed. 2017).

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1.4: Local Rules and Standing Orders

“Before you even begin composing, be certain that you’ll comply with the rules of the court in which you’re filing. If any of them seem unclear, call the clerk of court.” Antonin Scalia & Bryan A. Garner, [The Art of Persuading Judges](#) 65 (2008).

While that sounds like excellent advice, to a new legal writer, the question remains of what exactly are the “rules of the court”? The answer is, “It depends.” This is the default for most legal questions, as you will quickly learn. Specifically, it depends on which court you are submitting a document to and whether that court, or the system of which that court is a part, has established certain rules for things like font selection, page limits, document formatting, form usage, filing timelines, and more. These rules of the court are often called **local rules** because they apply only to that court or system of courts. [Local Rule](#), [Black’s Law Dictionary](#), (11th ed. 2019), defines a local rule as “1. A rule based on the physical conditions of a state and the character, customs, and beliefs of its people. 2. A rule by which an individual court supplements the procedural rules applying generally to all courts within the jurisdiction.” Local rules deal with a variety of matters, such as how many copies of a document must be filed, what type of font should be used in court filings, and what is considered appropriate courtroom decorum.

As an example of local rules being in the news, in January 2021 Florida courts changed their document formatting rules from page limits to word counts and to require using either Arial 14-point or Bookman Old Style 14-point font. [In re Amendments to Fla. Rules of Appellate Procedure 9.120 and 9.210](#), 307 So.3d 626 (2020).

Sometimes, courts will rely on standing orders instead of local rules to implement preferences for form usage, filing requirements and timelines, and other matters that affect cases that are routinely filed in that court. **Standing orders** are the rules governing the protocols of a court. These can include standards for form usage, filing requirements, and timelines. [Standing Order](#), [Black’s Law Dictionary](#) (11th ed. 2019), defines standing order as “A prospective omnibus court order that applies to all cases pending before a court.”

You have encountered types of local rules and standing orders many times before: the rules in a classroom. How to format your assignment submissions, when and if you can miss any class sessions, and the protocol for being called on to speak can all be analogized to a court’s local rules.

During law school, your professors will require you to format your documents in certain ways that might not make sense to you or that you might not like. Keeping up with formatting minutiae might seem tedious, but ensuring that your documents are formatted in the way the legal reader (in this case, your professor) expects is a quick way to keep points and to enhance your credibility as a legal writer.

Failure to follow local rules can result in a response not being accepted by the court and a party being prohibited from participating in oral argument at a hearing (see [Ordos City Hawtai Autobody Co., v. Dimond Rigging Co.](#), No. 13-14909, 2015 WL 13048810 (E.D. Mich. July 16, 2015)), denial of a motion (see [Thomas v. Hsiao](#), No. 12 CIV. 1128 ILG SMG , 2012 WL 5897412 (E.D.N.Y. Nov. 21, 2012)), or even fee-shifting from one party to another. (see [Royal Bahamian Ass’n. v. QBE Ins. Corp.](#), 744 F. Supp. 2d 1297 (S.D. Fla. 2010)).

Conclusion

There are many varieties of rules, as with so much else in the study and practice of law, and you should be certain to locate what the rules are for the jurisdiction in which you are researching, writing, and practicing. Following the local rules and standing orders builds your credibility with the practitioners within the jurisdiction and might also be the difference between your writing being accepted or rejected.

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1.5: Time Management

One of the challenges that many law students encounter during law school is how to effectively manage their time. Many of you were high achievers at your undergraduate institutions. Some of you have also worked full-time jobs prior to entering law school and were successful in those endeavors as well. However, first-year law students often find that the techniques on which they relied previously to complete their studies are no longer sufficient. This chapter serves to offer some advice, tips, and tools to consider.

ABA Standard 310

To be accredited by the American Bar Association, law schools must comply with a series of standards that the ABA imposes. These standards are meant to ensure that students receive quality legal educations at their institutions and that their education will be beneficial for the law students' eventual transitions into legal practice.

One of the primary standards that directly impacts you as a law student from the first day of law school is ABA Standard 310, which requires law students to spend a certain amount of time working in and out of class for each credit hour earned. American Bar Association, ABA Standards and Rules of Procedure for Approval of Law Schools 22 (2020).

The impact is that for every hour you spend in class, you should expect to spend at least two hours outside of class doing work for that class. At the University of Georgia School of Law, incoming first-year students currently take 16 hours in their fall semester. Doing the math, that means that in your fall semester, your courses are intentionally designed so that you should be spending 16 hours in class each week and at least 32 hours doing work outside of class each week. These 48 hours a week of work between attending classes, reading for classes, outlining for exams, and writing papers. This 48 hours a week does not take into account the time you need to eat healthy meals, exercise, maintain connections with your friends and family, and continue pursuing the hobbies that you currently enjoy. And yes, you should still find time to do all of these things.

Stay with me! You can do this! Every year most law students adapt to this new type of schedule and are able to be successful. The sooner you start adapting, however, the better off you will be. Your time is valuable, and how you use it matters. There are two components to effective time management that we will discuss: your weekly schedule and how you use the time during each block.

Weekly Schedule

First, you need to decide how you want to keep track of your organized time. Some people like to use calendars that are connected to their email accounts. Others like to use fancy paper planners (I'm one of those people). Still other folks use online task-management services like KanbanFlow or Trello. Heck, some people just find a blank sheet of paper and scribble on it. Two sample weekly schedules are included at the end of this chapter. Whatever method will consistently work for you is what you should use.

When selecting your type of planner, you should consider what method you will be most likely to regularly use and that will not be so time-consuming to maintain that you give up. Using a color-coded, multi-pen design will look nice, but if you will not implement the design and fill in the schedule each week, then it does you no good. If you live and die by your phone, then using a calendar that is tied to your email account and will show up on your phone's calendar is a good idea. If you know that you tend to overcommit yourself, then using a paper planner can allow you to take stock of everything you have going on in a given week (or month) before you commit to a certain course of action or activity.

When deciding where to slot in different law school tasks, you first need to assess what time of day you work best and what your other commitments are. If you are an early riser, then you might consider planning your days to start at 7:00 am, when the law library opens. If you do your best work in the late hours of the evening, then your time slots you work with might include 10:00 pm and later. Your weekly schedule should also include when you plan to exercise and your routine social activities you plan to continue. You should not live and breathe law school, and if you try, you will find it is not sustainable.

I also recommend that every student take a full twenty-four hours off from law school studies every week. For instance, you would stop working on law school coursework at 6:00 pm on Friday evening and not begin working again until 6:00 pm on Saturday evening. Have this twenty-four-hour break be a goal for which you strive. There will be times where you do not think you can take the full time off, and you should not feel guilty about failing to take time off.

Supreme Court Justice Ruth Bader Ginsburg credited motherhood and time management for her law school success. In an interview with The Atlantic, Justice Ginsburg stated,

I attribute my success in law school largely to Jane. I went to class at 8:30 a.m., and I came home at 4:00 p.m., that was children's hour. It was a total break in my day, and children's hour continued until Jane went to sleep. Then I was happy to go back to the books, so I felt each part of my life made me rested from the other.

Daniel Lombroso, Jackie Lay & Ryan Park, Ruth Bader Ginsburg on the Perspective That Comes With Motherhood, The Atlantic (Feb. 6, 2017), <https://www.theatlantic.com/video/in...rg-motherhood/>.

Similar to Justice Ginsburg's time management model, many law school graduates recommend that students treat law school like a job. Setting time constraints on law school work and trying to stick with them will ensure that your working time is more productive and your free time is more enjoyable.

When deciding how long to spend on each activity before you transition to something else, you should consider what is a reasonable amount of time that you can actually focus. Do not create a weekly schedule that is aspirational and that you *would like* to be able to complete. You need to work within what is achievable for you. Be realistic. You will not want to spend six hours in a row reading for all of your classes, and frankly, you will not be able to retain the information as well.

Think about how to chunk your time into manageable pieces. I typically block things out for one-and-a-half to two hours, and I expect that once every thirty minutes I will spend about five minutes doing something else: getting a snack, refilling my coffee cup, checking my email, or scrolling on social media.

Another benefit of chunking your time is when you apply this concept to your longer-term and bigger projects. In addition to your readings for classes and then outlining your notes after class, you might also have midterms that you will need to study for and writing assignments to complete. When you receive a big assignment or need to study for an exam, find ways to break down the large assignment into smaller units. For instance, rather than thinking, "ARGH I HAVE TO RE-READ EVERYTHING I HAVE EVER LEARNED ABOUT CIVIL PROCEDURE RIGHT NOW," you can instead approach your studies by saying, "Ok, on Monday and Tuesday I will review my notes and test myself on personal jurisdiction. Then, on Wednesday and Thursday, I will review what constitutes notice to the defendant."

Similarly, when you receive a large writing assignment, decide how to break down the assignment into smaller parts and then schedule those smaller parts. That could look like deciding to read facts and take notes for one section of time, then to design a research plan for another section, and then to implement the research plan over three different sections of time.

Also consider how hard you perceive the different tasks to be. If you think reading for Contracts is a piece of cake but Torts trips you up, then plan to read for Torts at a time when you feel like you have better focus and drive to get the work done. When something is more challenging, it takes more concentration to get the task completed. You want to weave your harder and easier tasks together.

You should commit to coming up with a new schedule each week. What each of your classes requires from you may change each week, and certainly over the course of the semester you will have larger assignments that you will need to devote time to completing. At the end of the semester, when you shift to preparing for finals, you will still benefit from making a schedule each week so that you can see where you have time to study for each of your subjects.

At the beginning of law school, you are going to feel like you are relearning how to read and study; you will wonder how you are ever going to find three hours to read ten pages of material for each of your classes. You might be frustrated and begin to doubt yourself. Please believe me when I tell you that you will develop the skills to read and study more efficiently as you keep practicing. You will not need as much time to read, even at the end of the first semester, as you do at the very beginning.

A final note about scheduling your time: when you participate in an internship or work during the summers between law school and when you start your career after you graduate, having a tried-and-true system to manage your time and meet your responsibilities in a timely fashion will greatly benefit you and your supervisors.

Working in the Schedule, or Actually Getting Work Done When You Said You Would

The more challenging part to effectively managing your time is not planning when you will accomplish tasks but rather ensuring that you actually do accomplish those tasks. By sticking to the schedule you create (and giving yourself grace to deviate from it when necessary), the "present you" is benefitting the "future you" by ensuring that you are completing work along the way and

without being rushed or running out of time to get done what you need to do. Trust me, at the end of November ,“future you” will really appreciate “present you” doing work along the way.

Chunking your time, as discussed above, can also help within your individual work sessions. One popular way to apportion your time is to use the Pomodoro Technique, an approach that was developed by Franciso Cirillo. The basic premise of the Pomodoro Technique is that you commit to yourself that you will focus only on the task you have assigned yourself for that period of time. The Technique calls for you to set your timer for twenty-five minutes, and once the timer goes off, you give yourself a short break of around five minutes. After four rounds with the timer (or approximately two hours), you give yourself a longer break. Forest, a study app available on any smart device, is a great tool for accountability and tracking progress throughout your work day. Using the Pomodoro Technique, for every twenty-five-minute interval of work completed, a tree is planted in your virtual “forest.” This encourages time away from your phone and improves productivity.

Another way that chunking can benefit you is for you to set your intention at the beginning of the work session. Being clear in what you want to accomplish allows you to meet benchmarks and to know when you can consider yourself “finished” with that assignment. For instance, you could determine that your goal for between 1:00 and 1:25 is to read and annotate four pages of material. Once you have completed that task, you can mentally (or literally) check it off your to-do list and move on to the next item. Giving yourself objective and measurable goals allows you to ease the feeling that many of you might experience that you have not ever done as much as you could and there is always something more to be done.

Conclusion

Part of success in law school, legal practice, or whatever career you pursue will be the result of finding the best system that allows you to produce quality work while still taking care of your mental well-being, maintaining connections to loved ones, and enjoying hobbies and other interests. The earlier you find and implement a system that works for you, the more successful and happier you will be.

Below are two weekly schedules to show you examples of how you can arrange your time to get you kickstarted in finding your best system.

Weekly Schedule: By Activity
Hourly Schedule for August 24 - 29

	Monday	Tuesday	Wednesday	Thursday	Friday	Saturday	Sunday
8:00 AM	Read for Civ Pro	Prepare for Legal Writing	Read for Civ Pro	Read for Civ Pro	Prepare for Legal Writing	Outline Torts	
8:30 AM	Read for Civ Pro	Prepare for Legal Writing	Read for Civ Pro	Read for Civ Pro	Prepare for Legal Writing	Outline Torts	
9:00 AM	Read for Civ Pro	Prepare for Legal Writing	Read for Civ Pro	Read for Civ Pro	Prepare for Legal Writing	Outline Torts	
9:30 AM		Torts	Torts	Torts	Torts		
10:00 AM	Read for Contracts	Torts	Torts	Torts	Torts	Outline Contracts	
10:30 AM	Read for Contracts	Read for Contracts	Prepare for Legal Research	Read for Contracts	Legal Writing Assignment	Outline Contracts	
11:00 AM	Read for Contracts	Read for Contracts	Prepare for Legal Research	Read for Contracts	Legal Writing Assignment	Outline Contracts	
11:30 AM		Read for Contracts	Prepare for Legal Research	Read for Contracts	Legal Writing Assignment		Legal Writing Assignment
12:00 PM	Lunch	Lunch	Lunch	Lunch	Lunch		Legal Writing Assignment
12:30 PM							Legal Writing Assignment
1:00 PM	Civ Pro	Legal Writing	Civ Pro	Civ Pro	Legal Writing		Legal Writing Assignment
1:30 PM	Civ Pro	Legal Writing	Civ Pro	Civ Pro	Legal Writing		
2:00 PM	Civ Pro	Legal Writing	Civ Pro	Civ Pro	Legal Writing		Legal Research Assignment
2:30 PM							Legal Research Assignment
3:00 PM	Contracts	Contracts	Legal Research	Contracts	Outline Civ Pro		Legal Research Assignment
3:30 PM	Contracts	Contracts	Legal Research	Contracts	Outline Civ Pro		
4:00 PM	Contracts	Contracts	Legal Research	Contracts	Outline Civ Pro		
4:30 PM							Legal Writing Assignment
5:00 PM	Read for Torts	Read for Torts	Read for Torts	Read for Torts			Legal Writing Assignment
5:30 PM	Read for Torts	Read for Torts	Read for Torts	Read for Torts			Legal Writing Assignment
6:00 PM							Legal Writing Assignment
6:30 PM	Legal Writing Assignment	Legal Writing Assignment	Legal Writing Assignment	Legal Writing Assignment			

Homework and Class Preparation
Class
Outlining

Connolly D. Jorgi

Weekly Schedule: By Class

Hourly Schedule for August 24 - 29

	Monday	Tuesday	Wednesday	Thursday	Friday	Saturday	Sunday
8:00 AM	Read for Civ Pro	Prepare for Legal Writing	Read for Civ Pro	Read for Civ Pro	Prepare for Legal Writing	Outline Torts	
8:30 AM	Read for Civ Pro	Prepare for Legal Writing	Read for Civ Pro	Read for Civ Pro	Prepare for Legal Writing	Outline Torts	
9:00 AM	Read for Civ Pro	Prepare for Legal Writing	Read for Civ Pro	Read for Civ Pro	Prepare for Legal Writing	Outline Torts	
9:30 AM		Torts	Torts	Torts	Torts		
10:00 AM	Read for Contracts	Torts	Torts	Torts	Torts	Outline Contracts	
10:30 AM	Read for Contracts	Read for Contracts	Prepare for Legal Research	Read for Contracts	Legal Writing Assignment	Outline Contracts	
11:00 AM	Read for Contracts	Read for Contracts	Prepare for Legal Research	Read for Contracts	Legal Writing Assignment	Outline Contracts	
11:30 AM		Read for Contracts	Prepare for Legal Research	Read for Contracts	Legal Writing Assignment		Legal Writing Assignment
12:00 PM	Lunch	Lunch	Lunch	Lunch	Lunch		Legal Writing Assignment
12:30 PM							Legal Writing Assignment
1:00 PM	Civ Pro	Legal Writing	Civ Pro	Civ Pro	Legal Writing		Legal Writing Assignment
1:30 PM	Civ Pro	Legal Writing	Civ Pro	Civ Pro	Legal Writing		
2:00 PM	Civ Pro	Legal Writing	Civ Pro	Civ Pro	Legal Writing		Legal Research Assignment
2:30 PM							Legal Research Assignment
3:00 PM	Contracts	Contracts	Legal Research	Contracts	Outline Civ Pro		Legal Research Assignment
3:30 PM	Contracts	Contracts	Legal Research	Contracts	Outline Civ Pro		
4:00 PM	Contracts	Contracts	Legal Research	Contracts	Outline Civ Pro		
4:30 PM							Legal Writing Assignment
5:00 PM	Read for Torts	Read for Torts	Read for Torts	Read for Torts			Legal Writing Assignment
5:30 PM	Read for Torts	Read for Torts	Read for Torts	Read for Torts			Legal Writing Assignment
6:00 PM							Legal Writing Assignment
6:30 PM	Legal Writing Assignment	Legal Writing Assignment	Legal Writing Assignment	Legal Writing Assignment			

Civil Procedure
Torts
Contracts
Legal Writing
Legal Research

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1.6: Metacognition and Study Skills

Metacognition

Metacognition means to engage in the process of thinking about thinking, studying how you think and learn so that you can improve how you, well, think and learn. As you read that sentence, you might have thought, “I am already trying to learn all of this legal stuff, and I don’t have time to think about how I think.” You do have time to engage in this process. In fact, you will find that the more you think intentionally about how and why you study, and then make adjustments as needed, you will actually be more efficient and effective with your studying.

Knowledge of cognition includes “strategic knowledge” (what you know about what kinds of study and learning strategies exist), “knowledge about cognitive tasks” (what you know about what kinds of strategies you will need to use based on what type of thinking and knowledge you are trying to accomplish), and “self-knowledge” (what you know about what you, specifically, are good at and what you need help with in terms of application of study strategies). Paul R. Pintrich, The Role of Metacognitive Knowledge in Learning, Teaching, and Assessing, 41 Theory into Prac. 219, 220-22 (2002).

Susan Ambrose et al., How Learning Works: 7 Research-Based Principles for Smart Teaching, 193-200 (2010), provides a helpful five-step process that demonstrates how to use metacognition when you are working on a particular course assignment.

1. Assess the task

The first thing you should do before you begin any assignment is to be sure you understand what you are being asked to do. What is the reason you are reading these particular cases? What is the end goal of the written assignment you are producing? Being certain you understand what the goal is lets you decide from the beginning what strategies to use that will achieve better outcomes. If this is the first time you have encountered this particular type of assignment, or if you feel unsure you understand what that goal is, then you might want to ask someone to confirm you understand the expectations before you begin.

2. Evaluate strengths and weaknesses

Once you understand what you are trying to accomplish, the next step you need to take is to use your self-knowledge to assess what you can do well to complete the assignment and where you might need to provide yourself some extra support. Be warned that beginners in a subject often overestimate their abilities, so it will not hurt to provide more support strategies than you think you need.

3. Plan

Now that you know what you want to complete and how your strengths and weaknesses will help you reach that goal, it is time to put together a plan about how you are going to approach the task. What resources do you need? How many sessions will it take? How much time will you spend in each session? What types of learning strategies will you apply? If you are going to use spaced repetition, how are you going to make sure you take enough time “off” from the material before you return to it?

4. Apply strategies and monitor performance

Now, finally, you can begin working on your task. Use your plan that you have put into place that (a) ensures you do what is being asked of you while (b) considering your strengths and weaknesses and (c) implements appropriate strategies. As you work, you should check in with yourself along the way, assessing what you are learning or what you have accomplished.

5. Reflect and adjust if needed

In addition to quizzing yourself as you work about what content you are learning or whether you are getting to the end of the assignment, you should also be assessing if your plan that you are using is working well. If the plan is not working, then you should consider what additional strategies you can use or what strategies you can substitute in place of less effective strategies.

Study Skills

“What are these strategies that she keeps writing about,” you might be asking yourself. There are different ways to approach categorizing these strategies. I prefer the GAMES method, created by Marilla Svinicki, in which she breaks down study strategies into five different types of strategies. Martha D. Svinicki, Helping Students Do Well in Class: GAMES, Observer (Oct. 1, 2006),

<https://www.psychologicalscience.org/observer/helping-students-do-well-in-class-games> The below instrument is from Paul Cunningham, *Knowing About Thinking: Knowledge of Cognition*, Skillful Learning (last visited Feb. 21, 2021), <https://skillful-learning.org/wp-content-Module-1.pdf>.

Goal-Oriented Studying

Use these when determining what you need to study

- Analyze what I have to do before beginning to study.
- Set a specific content learning goal before beginning to study.
- Set a specific work effort (time amount) before beginning to study.
- Figure out why I am learning the material I'm about to study.
- Be sure to understand what is expected of me in terms of learning assignments.

Active Studying

Use these before, during, and after studying

- Make notes in the margins of the text when I read.
- Ask myself questions before, during, and after studying.
- Pause periodically to summarize or paraphrase what I've just studied.
- Create outlines, concept maps, or organizational charts of how the ideas fit together.
- Look for connections between what I'm studying right now and what I've studied in the past or heard in class.
- Write down questions I want to ask the instructor.
- Reorganize and fill in the notes I took in class.
- Work through any problems that are illustrated in the text or in my class notes.
- Create vocabulary lists with definitions and my own examples.
- Take breaks periodically to keep from getting too tired.

Meaningful and memorable studying

Use these when making connections between current content and past units or courses

- Make up my own examples for concepts I am learning.
- Put things in my own words.
- Make vivid images of concepts and relationships among them.
- Make connections between what I am studying and past classes or units.
- Be sure I understand any example the instructor gave me.
- Create concept maps and diagrams that show relationships among concepts.
- Ask the instructor for more concrete examples and picture them in my mind.
- Look for practical applications and real-life settings for the things I'm learning.

Explain to Understand

Use these as examples of discussing course content with peers, family, friends

- After studying, meet with a partner to trade questions and explanations.
- Write out my own descriptions of the main concepts.
- Discuss the course content with anyone willing to listen.
- Answer questions in class.
- Make a class presentation.
- Help another student who is behind in progress.

Self-Monitor

Methods of keeping track of concepts that are not clear, and if those concepts become clear later, what made that concept click

- Make sure I can answer my own questions during studying.
- Work with another student to quiz each other on main ideas.

- Keep track of things I don't understand and note when they finally become clear and what made that happen.
- Have a range of strategies for learning so that if one isn't working, I can try another.
- Remain aware of mood and energy levels during study and respond appropriately if either gets problematic.

Becoming aware of the strategies you use most often and the strategies that you are not taking advantage of using can help you expand your set of tools to engage with, learn, and absorb material.

Bursting your Study Bubble

Tell me if this sounds familiar: About a week before the exam, you finally pull out all of your notes you took during the semester and you start reading them over and over again. You pull out your textbook and you reread your highlighted sections. Maybe you create an outline by copying and pasting from your notes and then you read that. You buy a commercial outline and you read that.

You review material from one topic or course before moving on to another topic or course. You make sure to review the material in the order it was presented in class and you do not try to rearrange the information. The night before the exam, you even put your book under your pillow for the “osmosis” effect of the words going into your brain. You walk into your exam, and you word-vomit every single word you read and reread onto the page.

Guess what? The above study strategy is one of the *worst* ways to actually learn the material. You have not actually *learned* the material; you have just temporarily stored it in your short-term memory to be able to spit it back out again. You have missed the deep understanding of the material, and the learning you were supposed to be able to get from that class will not provide a base to transfer to the classes after that, to the bar exam, and to the practice of law. By studying in the way described above, you are cheating yourself of your education.

Peter C. Brown et al. said it well in Make It Stick: The Science of Successful Learning 201 (2014):

Embrace the fact that significant learning is often, or even usually, somewhat difficult. You will experience setbacks. These are signs of effort, not failure. Setbacks come with striving, and striving builds expertise. Effortful learning changes your brain, making new connections, building mental models, increasing your capability. The implication of this is powerful: Your intellectual abilities lie to a large degree within your own control. Knowing that this is so makes the difficulties worth tackling.

Retrieval Practice

So, what is wrong with repeatedly rereading material, and what is the solution? When you reread, you are not actually using the material to confirm your long-term memory has made connections. You are remaining a passive recipient of information rather than actively engaging with the information. A better practice is for you to use retrieval practice, which means you quiz yourself on the material as you are reading it the first time, when you are reviewing the material at set intervals throughout the semester, and when you are studying for your final exam.

For instance, when you read a case and find the issue presented, stop reading and ask yourself how you think the court will come out and why. Then, as you read through the case and the court's reasoning, ask yourself if you see the steps the court is taking to reach its result and whether you agree with what the court is doing. If there are questions in the textbook at the end of the case, then try to answer those.

Another point at which you should quiz yourself is when you review your material from the week. Ask yourself if you see how the material from one class connects to the next. From your memory, make a chart or another visual aid that demonstrates those connections. Then, check that your visual aid accurately represents the connections by going through your notes and your textbook. An important part of retrieval practice is that you give yourself time between sessions to forget the material you have learned. By spacing out your practice sessions and then making yourself recall the information, you are ensuring that you are embedding this knowledge in your long-term memory.

When you are quizzing yourself, it is not important to get the answer right (although that is always nice). The critical part of the retrieval process is that you are requiring yourself to actively recall the information and use it, rather than letting yourself be told the information. Remember, you want to be an active engager, not a passive recipient. As you use this method to review, keep track of the types of issues that you understand well and the types of issues you find more difficult. When determining whether you understand the material well, do not base it on how you feel, but instead on whether you answer correctly. There is nothing wrong

with not knowing every answer at this point. If you fail to acknowledge your weaker points, you are denying yourself the opportunity to effectively manage your time and study the areas in which you struggle. Be honest with yourself so you can appropriately prepare.

Interleaving

When you are studying, you should resist the urge to compartmentalize your study into separate subjects. Having a Contracts day and a Civil Procedure day and a Torts day might sound appealing, but you are losing out on being able to have your mind strengthen its capacity. By actively studying multiple topics during the day, not only are you learning the material for those topics but you are also practicing discerning different types of problems and recognizing that different solutions will apply to each.

Similarly, when you are studying for exams, you should not only go in chronological order. Rather than studying personal jurisdiction until you feel confident and only then moving on to subject matter jurisdiction, you should be mixing up the topics and studying them as they come. Making and using flashcards can be beneficial for this type of practice. Outlining essay exam answers can also be beneficial. Your exams will not be neatly broken into units, so you should not study in units. Further, when you take the Bar Exam, the questions will not be nicely grouped by topic and you will instead need to be able to quickly shift to whatever substantive law the question demands.

Finally, when you are in practice, you will encounter messy factual scenarios that might involve several areas of law at once, and you will want to be able to sort them. Begin practicing these skills now, and you will be making life easier for future you. I promise!

Mnemonic Devices

Mnemonic devices are also a helpful study aid. Examples that many people should be familiar with are Please Excuse My Dear Aunt Sally or PEMDAS (the correct order in which to apply math functions in a problem), My Very Excellent Mother Just Served Us Nachos (the planets in our solar system in order of closest to farthest from the Sun), or FANBOYS (coordinating conjunctions). Commercial outlines and supplements for your doctrinal classes might provide mnemonic devices that can be useful.

You can also create your own mnemonic devices! Even the work to come up with a mnemonic device is a good way for you to review the material you are learning. By deciding how to group or order the concepts for your mnemonic device, you are drawing connections between the concepts and creating a map of how to use the concepts.

Conclusion

This chapter is a brief overview of what metacognition is and how you can apply it to your studies. There is much more to both metacognition and to the science of learning than is presented here. If you are interested in learning more, please consider looking at the resources listed in the For Further Reading section.

For Further Reading

Ulrich Boser, [Learn Better: Mastering the Skills for Success in Life, Business, and School, or, How to Become an Expert in Just About Anything](#) (2017).

Peter C. Brown et al., [Make It Stick: The Science of Successful Learning](#) (2014).

James Clear, [Atomic Habits: An Easy and Proven Way to Build Good Habits & Break Bad Ones](#) (2018).

David Epstein, : [Why Generalists Triumph in a Specialized World](#) (2019).

Susan A. Ambrose et al., [How Learning Works: 7 Research-Based Principles for Smart Teaching](#) (2010).

Patrick Cunningham, "Skillful Learning," www.skillful-learning.org.

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1.7: Introduction to Citation

Citation is the method that tells the reader of legal documents the source of the legal or factual statement that the citation follows. The reader, when given information to find the source on their own, can assess whether the source is (1) a primary or secondary authority; (2) a mandatory or persuasive authority; (3) credible to the reader; and (4) relevant to the issue being discussed.

You should use a consistent citation format with which the reader is familiar because it makes it easier for the reader to check the sources you cite. This, in turn, enhances your credibility as a writer because you are making it easier for the reader to follow what you are saying.

The Bluebook: A Uniform System of Citation, Columbia Law Review Ass'n et al. eds., (21st ed. 2020), is considered the standard for legal citation, and we will use this citation manual for this class. There are other citation manuals, and some states have even developed their own. Be sure to use the proper citation format for your particular jurisdiction.

Parts of the Bluebook

The Bluebook has five parts.

1. Quick References (inside front and back covers)
2. Practitioner's Notes (blue pages)
3. Rules (white pages)
4. Tables and Abbreviations
5. Index

For this class, plan to use the Practitioner's Notes, which we will refer to as the blue pages, as these are the rules for functional legal documents like memoranda and briefs. The Rules, or white pages, are for scholarly legal writing like law review articles. There will be times when you will have to look in the white pages for the full rule.

Citation Forms

Rules indicated are the start for creating your citations; this is not an exhaustive list.

Full citation

See Rules B10.1.1-3; R10-10.5. The complete citation to the source, including every component required by the appropriate Bluebook rule. Use the full citation the first time you cite any source.

Short citation

See Rules B4, B10.2, R4, R10.9. The abbreviated citation. Use the short citation only after you have cited the source fully

Pinpoint citation

See Rules B10.1.2, R3.2. A citation, either full or short, that indicates the specific page on which the reader can locate the proposition you state the source supports. Use a pinpoint citation, or pincite, whenever you quote or paraphrase from a source. Also use a pincite when you are referring to a specific part of a judicial opinion, such as a dissent or concurrence.

Parallel citation

See Rules B10.1.3, R10.3.1. A citation that provides information on where to find the source in multiple resources. You will most often encounter this for case citations because cases are often published in multiple reporters; for instance, Georgia cases can be found in both the state reporter and also in the regional reporter. Whether to use parallel citations depends on your jurisdiction and court's preference.

String citation

See Rule R1.4. A citation that consists of citations to multiple authorities that are connected to each other in a certain way. You will most often encounter this when citing multiple cases that support the same proposition stated or when citing multiple cases to explain from where you synthesized a legal rule.

Textual sentence/Citation Clause

See Rules B.1, R1.1. When you insert the citation as a clause into part of a sentence. *For example, in Sweatt v. Painter, 339 U.S. 629 (1950)...*

Citation Sentence

See Rules B.1, R1.1. When the citation comes after the sentence for which you need to provide support. *The Equal Protection Clause extends to admitting students to law schools. Sweatt v. Painter, 339 U.S. 629 (1950).*

Citation Examples

Full Citation

Plaintiff
Vasquez Defendant
v. Smith, Reporter
259 Ga. App. 1 Year of Decision
(2003).
"v." for "versus" Reporter Volume Number First Page of Case

Short Citation

Plaintiff
Vasquez, Reporter
259 Ga. App. 1.
Reporter Volume Number First Page of Case

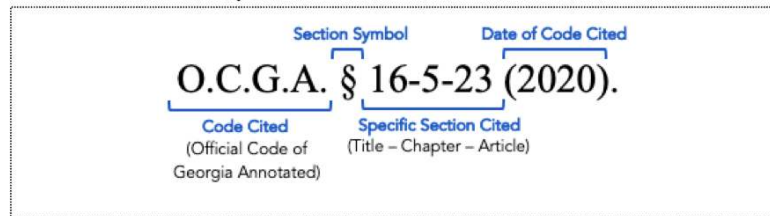
Full Pinpoint Citation

Plaintiff
Vasquez Defendant
v. Smith, Reporter
259 Ga. App. 1, 2-3 Span of Specific Pages Referred To
(2003).
"v." for "versus" Reporter Volume Number First Page of Case Year of Decision

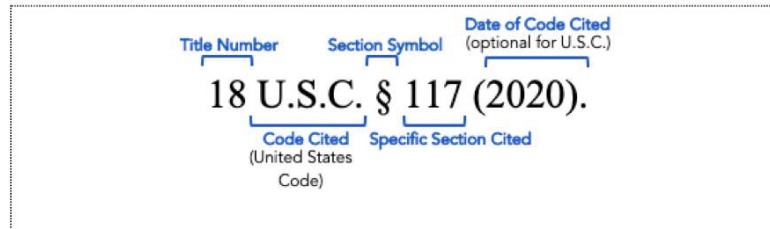
Short Pinpoint Citation

Plaintiff
Vasquez, Reporter
259 Ga. App. at 2.
Reporter Volume Number Specific Page Referred To

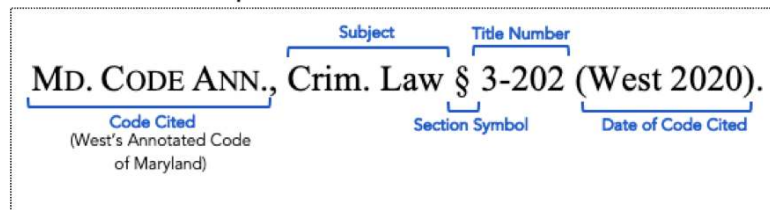
Statute Citation Example 1



Statute Citation Example 2



Statute Citation Example 3



Common Citation Questions

Italics or Underlining?

The Bluebook allows you to use either italics or underlining for case names. For this class, you will use underlining because, quite simply, it is easier for me to see whether you have formatted your citation correctly. Many firms and judges prefer italics. As with so much in legal writing, be sure to consult your local rules, standing orders, or style guides when deciding whether to use italics or underlining for documents you produce outside of this class. Also, be sure to stay consistent with your choice of italics or underlining.

Which citation do I use?

The first time you cite a source, you must provide the full citation and you cannot break any of the pieces apart. Sometimes this results in awkward-looking sentences. *For instance, when considering Sweatt v. Painter, 339 U.S. 629 (1950), ...* The next time you discuss the same case, however, you can rely on a short citation, either the shortened version of the full citation or id., depending on which one is appropriate.

How do I cite to two cases that discuss the same thing?

The following are correct:

- In Smith and Jones, the court recognized XYZ. 123 Ga. App. at 457; 111 Ga. App. at 223.
- In Smith v. Beck, 123 Ga. App. 456, 457 (2019), and Jones v. Rutledge, 111 Ga. App. 222, 223 (2020), the court recognized XYZ.

Some writers believe that in-line citations should be avoided at all costs, and others believe that using split citations should be avoided at all costs. You will have to decide which format is better for you.

How do I cite a sentence that requires two citations to two different parts of the sentence?

First, consider whether your sentence is likely too long and you should split the sentence into two smaller sentences. If division into smaller sentences does not work, the following are correct:

- [First part of sentence], [long cite to case 1], [second part of sentence], [long cite to case 2].
- [First part of sentence], [long cite], [second part of sentence], [short cite].
- [First part of sentence], [short cite], [second part of sentence], [long cite].
- [First part of sentence], [short cite], [second part of sentence], [short cite].

For example, "Courts have concluded that a battery has occurred when [fill in facts], [short/long cite to case 1], and also when [fill in facts] [short/long cite to case 2]." So, even though you normally place short citations as a separate citation sentence, you make an exception when you cite a sentence that requires two citations to two different parts of the sentence.

Further, if you need to cite a very large page range (e.g., the facts you use are on page 1 and the holding is on page 65), it would be helpful to your reader if you employed this technique. The rationale is that attribution trumps readability. Remember that if the information is not your original thought, you must let the reader know from whence the information came.

"Can I use 'id.' in a string cite?"

If the first case in your string cite refers to the immediately preceding case, yes! But you may not use "id." after a string cite. So the following is correct:

- [Sentence] Brown, 456 Ga. App. at 320. [Sentence]. Id. at 321; Smith, 123 Ga. App. at 22; Jones v. Rutledge, 111 Ga. App. 222, 223 (2020).

However, the following is not correct.

- [Sentence]. Brown, 456 Ga. App. at 320; Smith, 123 Ga. App. at 22; Jones v. Rutledge, 111 Ga. App. 222, 223 (2020). [Sentence]. Id. at 321.

Conclusion

This chapter is intended to serve as an overview to what a citation is and why it is necessary. For more in-depth treatment of the mechanics of putting together a citation, refer to [The Bluebook](#) and other resources.

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1.8: The Legal Reader

A **legal reader** is a person who has received legal training. The most common type of legal reader we think of is a judge; other types of legal readers include attorneys, law professors, and law students. For your first year of law school, the types of documents you write are typically aimed at legal readers, and below we will discuss commonalities in legal readers that you should remember when you are writing. However, keep in mind that all audiences, and not just legal readers, value many of these same attributes when reading written works.

When a person reads legal writing, that person is most often looking for an answer to a legal issue. The writer's focus, then, should be on providing a document that makes it as easy as possible for the reader to find what they are looking for. When the reader feels comfortable while reading something, they are more likely to give credibility to the author and assume that what the author (you!) is saying is correct.

Legal writing is a type of technical writing. Michael J. Higdon, The Legal Reader: An Exposé, 43 N.M. L. Rev. 77, 80 (2013). Higdon describes ten attributes that define technical writing, listed below:

1. Pertains to a technical subject
2. Has a purpose
3. Has an objective
4. Conveys information/facts/data
5. Impersonal
6. Concise
7. Directed
8. Performed with particular style and in a particular format
9. Archival
10. Cites contributions of others

Id. This list also describes what your legal reader is looking for when reading your work. You should keep these attributes in mind when you are writing and endeavor to include all of them in your finished product.

Now that we have defined a legal reader and their expectations when reading your work, let us now look at how to describe the legal reader.

Remember that a legal reader is looking for an answer, which means that you should present your information quickly and easily. In fact, you should state the answer to the legal issue at the beginning and then use the rest of the document to support *why* your answer is correct. Legal writing is not a mystery novel and it is not stand-up comedy, so do not save the identity of the murderer or the punchline until the end of the document.

A legal reader looks for a roadmap at the beginning of a written document. By knowing how the information is going to be presented and in what order, the reader can better follow along with your supporting evidence you provide to back up your answer to the legal issue. Sometimes, a reader will want to skip to a particular section, and the roadmap lets the reader know where in the paper to look for a specific part. Of course, you will have to be sure to follow the roadmap you provide as you move through your writing!

Your overall document should be organized by using conventional legal writing structures, should employ transitions and connectors as you move from step to step, and should use headings and subheadings when they make it simpler for the reader to navigate the document. Additionally, your language should be clear and accessible. This means you should not have grammar errors or typos; you should have strong topic sentences to introduce the ideas in each of your paragraphs; and your sentences should flow easily from one to the next.

Here come the tougher parts about a legal reader. Because the reader is looking for an answer, they want to get to the answer quickly and find the answer during the first (and maybe only) time reading your paper. This has nothing to do with you or not valuing your work. Rather, the reader is using your writing as a tool, and a tool works best when it can be used quickly and efficiently and then put away. This is one of the hardest transitions for students to make. No longer is your writing intended to awe the reader with the novelty of your ideas and the fluidity of your prose. The reader will not sit down with a cup of coffee in hand

and curl up to read your riveting discussion on the thin-skulled plaintiff. Think about how you read your cases for class: you are reading them to understand the concepts, to be able to answer correctly in a cold-call, and to perform well on the exam. The reader of your legal document feels the same when reading your work.

A legal reader also is not likely going to give you the benefit of the doubt. The reader will look for holes in your argument. The reader will also approach your writing with skepticism. Again, this has nothing to do with passing judgment on you as a person. The reader's legal training means testing the conclusions and supporting evidence to determine the soundness of the argument.

Conclusion

Understanding the characteristics of a legal reader allows you to write a document that your audience finds usable. Further, by providing the legal reader what they seek, you increase your credibility with the reader. When the reader can use your work and believes in your credibility, they are more likely to agree with your position.

For Further Reading

Michael J. Higdon, [The Legal Reader: An Expose](#), 43 N.M. L. Rev. 77 (2013).

Bryan A. Garner, [Know Thy Reader: Writing for the Legal Audience](#), Mich. B.J., Nov. 2019, at 46.

Ross Guberman, [Judges Speaking Softly What They Long for When They Read](#), Litigation, Summer 2018, at 48.

Ann Sinsheimer & David J. Herring, [Lawyers at Work: A Study of the Reading, Writing, and Communication Practices of Legal Professionals](#), 21 Legal Writing: J. Legal Writing Inst. 63 (2016).

Andrew M. Carter, [The Reader's Limited Capacity A Working-Memory Theory for Legal Writers](#), 11 Legal Comm. & Rhetoric: JALWD 31 (2014).

Laura A. Webb [Why Legal Writers Should Think like Teachers](#), 67 J. Legal Educ. 315 (2017).

Joe Fore, [Why You Should Sweat the Small Stuff: Encourage Students to Eliminate Brown MMs from their Legal Writing](#), 25 No. 1 Persp: Teaching Legal Res. & Writing 18 (2016).

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1.9: Prewriting

Think about the last time you needed to write a paper. Did you sit down at your desk with your laptop, open up Microsoft Word to a new blank document, place your fingers on the keyboard, and start composing beautiful prose that flowed from your mind through your fingers onto the screen without any need to stop until you had finished writing a complete and perfect paper? Wait, does that not sound right? What about this: Did you sit down at your desk with your laptop, then get up to get a drink, then text some friends, then go to the bathroom, then return to your laptop and think to yourself, “I will never ever find a single word to write on this paper and the assignment is stupid and I just can’t”? You could also be a student who has never written a lengthy paper, so you do not have prior writing experiences to reflect on. Maybe you are returning to school after some time out of school and you cannot remember how you used to write a paper of any length. Or maybe you do not yet see how projects you have completed also count as writing projects, or at least will benefit from the same steps that are used in the writing process. Making a presentation to a boss, generating a lab report, and filling out spreadsheets with collected data are all projects that benefit from implementing the writing process, including these prewriting steps.

One of the biggest mistakes that writers make is to fail to consider the entire writing process timeline of a document. **Prewriting**, that time before you sit down to put words on a page, is an often-overlooked part of the writing process. There are two parts to prewriting. The first step is to assess what you need as a writer to create the best possible environment and the second step is to perform the preparation steps that come prior to writing.

Self-Assessment

Assessing yourself as a writer is something that you should complete in-depth every semester. You should be sure to implement what you learn about yourself as a writer for every writing project you undertake, but you will not have to complete a full assessment each time. For a starting point, consider completing this self-assessment questionnaire from Pam Jenoff, [The Self-Assessed Writer: Harnessing Fiction-Writing Processes to Understand Ourselves as Legal Writers and Maximize Legal Writing Productivity](#), 10 Legal Comm. & Rhetoric: JALWD 187, 192 (2013).

Self-Assessment Questionnaire

Part One - Environmental/Atmospheric Preferences

1. What is your preferred time of day to write? Why?
2. What is your preferred writing environment? (Location? Activity or quiet?)
3. What is your preferred writing medium? (Desktop, laptop, longhand?)
4. Are there particular foods or beverages that enhance your writing experience?

Part Two - Substantive Assessment

1. What are your writing strengths?
2. What are your writing weaknesses?
3. Describe some of your prior favorite writing experiences. Least favorite?
4. Describe your writing style.
5. How do you like to begin a writing project?

You should consider these questions to be a starting point to assess yourself. Other things you can consider for environmental and atmospheric preferences include what you prefer to wear when you write, whether you want to listen to music, and how much space you like to have to spread out your materials. When completing your substantive assessment, also ask yourself what evidence you have to support your strengths and weaknesses. Ask why you identify certain previous writing experiences as favorites and least favorites; what do the favorites have in common and what set them apart?

Once you have determined what your preferences are to create an ideal writing environment, you will then need to assess whether you can meet those preferences. If you cannot, and chances are there will be times when you cannot, have a plan for what to do to cope with writing environments that are less than perfect. Consider how you can use your current environment to work best for you. If you have to write in a noisy environment, can you use earplugs or noise cancelling headphones? If you do not have access to a desk, can you use a dining room table? If your internet is unstable, can you go to a library or coffee shop?

Preparation Steps

The second part of prewriting is the series of steps that you should take prior to sitting down to put pen to paper. This part should feel familiar! However, many people forget to include these steps as vital parts of the writing process, which can result in either people not budgeting sufficient time for these steps or feeling like they are wasting time when they should be writing. Paying careful attention to these steps of the writing process is just as important as the others! This list is an overview of the prewriting process that you should use before starting to compose your written document:

- Read the assignment and any accompanying documents.
- Gain mastery over the facts.
- Develop your research plan.
- Read the authorities you find.
- Develop what categories you will use to determine relevancy.
- Retain the authorities that are relevant to deciding your legal issue.
- Analyze the remaining authorities to determine what narrow issue to use to answer your legal question.
- Map out how you will use the authorities to support the conclusion you draw.

And then, write.

Conclusion

Accept that there is more to creating a quality written document than just the time spent typing away on the keyboard. Discover the set-up that works best for you and build in time to your writing process to lay groundwork that sets you up for success.

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1.10: CREAC Legal Writing Paradigm

Effective organization of your legal analysis allows the reader to clearly understand your analysis or argument, which makes the reader better able to side with your reasoning. Effective organization also enhances your credibility. Legal writing typically follows a particular organizational paradigm that legal readers expect to find. You should use an appropriate organizational structure when writing the body paragraphs of your analysis or argument. Organizational paradigms serve to strengthen writing through providing clarity rather than weaken writing through rigidity.

So, what is this magic paradigm that everyone is supposed to use? Well, there is no single format that everyone agrees on. There are similarities across all formats, and keeping those similarities in mind will lead to effective organization of your analysis. Good organization in legal writing “include[s] rule-centered analysis, separation of discrete issues, synthesis of the law, and unity.” Tracy Turner, Finding Consensus in Legal Writing Discourse Regarding Organizational Structure: A Review and Analysis of the Use of IRAC and Its Progenies, 9 Legal Comm. & Rhetoric: JALWD 351, 352 (2012).

Keep in mind that these organizational structures are intended for use with your legal analysis paragraphs only. Introductory sections, statements of fact, questions presented, brief answers, and conclusion sections all have their own separate preferred organizational structure that we will discuss as we practice those units.

CREAC Structure and Overview

In this course, we will be using CREAC as our legal writing organizational paradigm. At its most basic, this acronym stands for:

C - Conclusion
R - Rule
E - Explanation
A - Application
C - Conclusion

However, that description is not particularly helpful for novice writers, so I have expanded on the letters to provide the following details.

C - Conclusion, overall, to the particular issue that is to be addressed; topic sentence about what the remainder of the section will discuss and that the rest of the block will prove.

R - Rule to be applied to reach the conclusion stated at the beginning of the section; use the specific issue within the rule that will be addressed in this block.

E - Explanation of how the rule has been applied in past cases using those past cases’ facts, reasonings, and holdings; this is the education piece of your analysis where you teach what your reader needs to know about the rule’s use in the past so the application to the current case will make sense. This about this as your *education* section.

A - Application of the rule to the current situation you are addressing; you will fact-match using analogy and distinction, and this is where you will be explicitly proving the conclusion that you stated at the beginning. Your counteranalysis, where you predict the other side’s argument and then refute, also goes here. Think about this as your *action* section.

C - Conclusion, detailed, to the particular issue that was addressed in the block; summarizes the R/E/A without introducing any new ideas and reinforces what you want the reader to take away from this block.

When to use CREAC

You will use CREAC any time you are conducting an analysis or presenting an argument of a particular legal question as applied to a specified set of facts, such as in a legal memorandum or a brief. If you do not have facts to which to apply the law, such as in a Summary of Law, then you will use a modified legal writing paradigm of CRE-C, where you will not have an A section because there is no “application” of the law to any facts.

Before you start writing any legal analysis, be sure that you understand the law you need to explain and apply. Go back to your rule and case synthesis materials and confirm you are confident in your comprehension. If you are uncertain or unclear in

your own mind, then that will be conveyed through your muddled writing to your reader. You want your writing to be as clear, concise, and crisp as possible!

Once you begin writing the legal analysis portion of the legal document, break down your rule statement for each issue into its parts. Then, use one CREAC-block per each part of the rule statement. The part could be defined by issue, by portion of the issue, or by the entire rule, depending on what the whole legal analysis calls for. Refer to Rule Synthesis and Case Synthesis chapters for more information.

CREAC Structure Explained In-Depth

The first C of CREAC serves as your topic sentence for the particular legal issue you are addressing. This is where you offer your general conclusion to the legal question posed; remember that you will give more details in your second C at the end of your CREAC-block.

The R of CREAC is the synthesized legal rule that should be applied to a specific situation. The rule is the skeleton, devoid of meaty facts, that provides what courts should consider as they flesh out the answer to the current legal question with the specific facts before them. The rules that we typically seek in this class are the core substantive rules about how to answer the substantive legal question; be aware there are also supporting rules that address how a rule should be applied or what the timing is for when a particular rule should be applied. The Rule Synthesis chapter goes into a lot more detail.

Organize your Explanation by the issue, key fact, or similarity that you identified in your case synthesis process. Do not write a series of case summaries. Your goal as a writer is to do as much of the work as possible for the reader. When you organize by case rather than by issue, you are shifting analytical work to the reader to decide what you mean. In this section, you are not referencing the facts of your case yet. In your Explanation, you are setting up for your reader all the facts and reasoning from past cases that you will later use in your Application section. Think of yourself as laying out all the cooking ingredients that you will need to bake a cake before you begin to mix any ingredients together.

Be sure that your Explanation includes cases on both ends of whatever spectrum is created by your legal question. For example, you will want to examine cases that find a battery did occur and cases that find a battery did not occur. Even more specifically, you will want to examine cases that differ on what the outcome was for each element or factor of the legal question you are addressing. To continue with the battery example, you would want to consider cases where there was an intentional touching and where there was not an intentional touching.

Every case that you will use in your Application section, whether it be to prove your analysis-in-chief or to demonstrate a counteranalysis, must be included in your Explanation section.

Your Application component should start with analogizing and distinguishing the past sources of law that you have laid out in your Explanation section with the facts of the current situation. The rest of the Application should prove that your analogy is correct. Weave your analysis using facts, reasonings, and holdings together.

Fact-Matching

For conducting this weaving-together, I recommend you use a technique I call fact-matching. By using fact-matching, you ensure that you show how each piece of the rule that you have identified was used in past cases and thus how it should be considered in your current situation. Fact-matching allows you to connect the facts from the past cases to the facts in the current situation so that the work you did explaining how the rule played out in the past cases can quickly link up to your application to the current situation.

Fact-matching does not always mean you have to create comparisons where the fact from the past case and the fact in the current situation are similar. In fact, you should be both **analogizing** (showing how they are the same) and **distinguishing** (showing how they are different) facts from the past cases and facts in the current situation. You will use phrases like, “Like the plaintiff in X, the client here...” or “Unlike the child in Y, the child here...”

Think of fact-matching as getting to finally put the pieces of the puzzle together that you have been carefully laying out, sorted into edge pieces and middle pieces and certain portions of the overall picture. You are finally getting to assemble the scene that you have found through your research and analysis, and you are showing the reader how to replicate your results.

Counteranalysis

Remember that you will place your counteranalysis in the Application section, but that you will get to the counteranalysis only after you have completed your analysis-in-chief. The purpose of a counteranalysis is to show the reader why the outcome you are predicting for the current situation is more likely than the opposite outcome. For example, when presenting Plaintiff's claim of battery against Defendant, there will be a counteranalysis component that identifies the strongest argument against Plaintiff's being successful in a battery claim against Defendant, but you will then show why that argument will fail. In other words, you are setting up the other side's strongest argument only to knock it down quickly.

Then, for your conclusion statement, summarize for the reader what you have shown in your CREAC-block. Continue this pattern until you have analyzed each part of the rule and each issue.

Examples

How your R sets up will determine how you set up your E and A sections. Rather than trying to explain this in general terms, it is easier to understand with an example. To return to the battery hypothetical, when you sit down to write the R for battery in your introductory paragraph, your rule should look something like this:

The requirements to prove battery in Georgia are (1) a touching; (2) that is intentional; (3) in an offensive manner; (4) with *either* the intent to cause harm *or* to cause insult or offense, or both.

When you go to write a CREAC-block to examine each piece of the rule, you will use a CREAC-block for each part of the rule that is at issue, meaning that the parties do not agree on both the facts and their legal significance. Assuming that nothing is a given, you will need four CREAC-blocks.

- (1) a touching;
- (2) that is intentional;
- (3) in an offensive manner;
- (4) with *either* the intent to cause harm *or* to cause insult or offense, or both.

For the first part of the rule, (a touching) your CREAC-block would set up as follows:

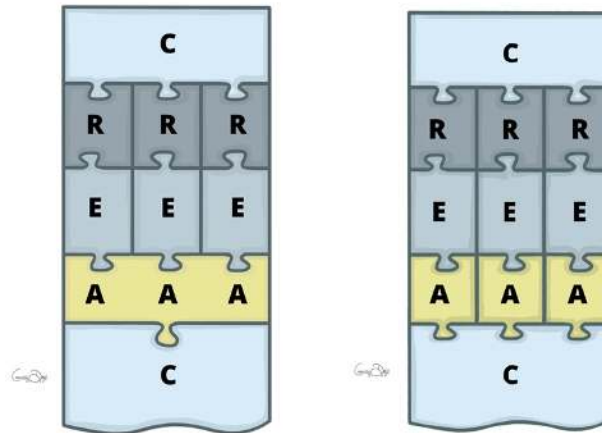
- C** - Yes, a touching occurred.
- R** - The rule to determine whether the touching occurred
- E** - How the rule has played out in past cases to show whether a touching occurred
- A** - How the rule will likely play out in the current situation
- C** - Yes, the touching occurred because...

The second and third parts of the rule would set up similarly.

For the fourth part of the rule (*either* intent to cause harm *or* to cause insult or offense), however, the CREAC-block will set up differently.

- C** - Yes, there was intent to cause harm and to cause insult or offense.
- R** - The rule to determine whether there was intent to cause harm.
- R** - The rule to determine whether there was intent to cause insult or offense.
- E** - How the rule has played out in past cases to show whether there was intent to cause harm.
- E** - How the rule has played out in past cases to show intent to cause insult or offense.
- A** - How the rule will likely play out in the current situation about intent to cause harm.
- A** - How the rule will likely play out in the current situation about intent to cause insult or offense.
- C** - Yes, there was intent to cause harm and to cause insult or offense because...

The two graphics below show the two different ways that CREAC-blocks can break down based on what the rule calls for to supplement the written description above.



Setting Up Your CREAC-blocks

One way to set up your CREAC-blocks when you are brainstorming or outlining would be to use a table like the one below, so you can be sure you are addressing each component.

C	
R	
E	
A	
C	

Once you begin writing more complicated legal analyses, you might have to stray from this setup. That is absolutely fine. At the beginning of your legal writing career, however, stick with this organizational schema to make sure you include all relevant portions of your analysis so that your work is thorough and complete.

Conclusion

Using CREAC for the analysis portions of your legal writing will ensure that you thoroughly demonstrate to the reader each piece of your analytical process so that the reader can use your writing as an effective tool.

For Further Reading

David Romantz & Kathleen Elliot Vinson, Legal Analysis: The Fundamental Skill 89-105 (1st ed. 1998).

Jill Barton & Rachel H. Smith, The Handbook for the New Legal Writer 27-30 (2014).

Tracy Turner, Flexible IRAC: A Best Practices Guide 20 Legal Writing: J. Legal Writing Inst. 233 (2015).

Tracy Turner, Finding Consensus in Legal Writing Discourse Regarding Organizational Structure: A Review and Analysis of the Use of IRAC and Its Progenies, 9 Legal Comm. & Rhetoric: JALWD 351 (2012).

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1.11: Predictive Writing

Predictive writing, also known as objective writing, consists of using rule synthesis and case synthesis to analyze a specific factual situation and forecast what the likely outcome will be. The most common types of predictive writing that lawyers produce include formal legal memoranda, e-mail memoranda, and client letters. When completing this type of writing, you are serving in an advisory role to assist someone, such as your supervisor or client, in making the best decision possible.

You should keep your client's interests in mind by still being honest about the likelihood of a favorable result. Predictive writing must convey if something is uncertain or unknown, remain accurate as to what the state of the law is on the particular topic, and disclose both strengths and weaknesses of the case. Unlike persuasive writing, the goal of predictive writing is not to convince your audience that your argument is correct. Instead, you are writing an informed prediction of the outcome of the case based on your research. As with all types of legal writing, you should write clearly, concisely, and precisely.

When you are predicting how likely it is that a particular outcome will occur, remember that you are serving as an advisor. While you are sharing your opinion about the likelihood of possible outcomes, you should not share your opinions on the facts or the case law unless it directly ties into your ultimate conclusion. We will practice this! Some of you will like this type of writing, and some of you will prefer persuasive writing. Whether you enjoy writing predictively should not influence your ability to produce an objective piece of writing when that is what the assignment requires.

Conclusion

Predictive writing is one of the primary forms of analysis and writing that lawyers perform. Remember that when you are asked to complete a predictive writing task, you are not assuming what the ending will be and are instead following the path on which the law takes you to reach a conclusion.

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1.12: Rule Synthesis

What is Rule Synthesis?

Rule synthesis is the process of determining which sources of law you will use to answer a legal question. Think back to when we discussed sources of law. We discussed that our legal system is founded on the idea that past decisions will guide us in predicting an outcome for the current situation. A legal rule can be a statute or a case holding that is directly on point for the legal question you are trying to answer. Often, however, you have to combine pieces from different places to formulate the rule. Successfully piecing together a rule is the backbone of performing legal analysis. Remember, the rule is the skeleton, devoid of meaty facts, that provides what courts should consider as they flesh out the answer to the current legal question with the specific facts before them. The rules we typically seek in this class are the core substantive rules about how to answer the substantive legal question; be aware there are also supporting rules that address how a rule should be applied or what the timing is for when a particular rule should be applied.

When you create a rule, [the] rule should meet three criteria. **First**, it should be simply stated - concise enough for the reader to grasp easily. **Second**, it should be readily applied - unambiguous because the terms have defined, non-circular meanings, specific enough to give guidance for a new set of facts, but not too narrow to be useful. **Third**, it should be consistent with the cases and law in the jurisdiction - if applied to the existing cases, the rule would accurately predict the outcome of each.

Paul Figley, Teaching Rule Synthesis with Real Cases, 61 J. of Legal Educ. 245, 247 (2011).

Judicial opinions sometimes signal when they are about to state the rule being applied. Pay attention to phrases like “the holding is,” “we hold that,” “as a matter of common law,” “in this jurisdiction,” and “the present case is controlled by,” as opinions will use these to indicate the rule. Remember, however, that not all judicial opinions will make clear what rule is being used. Some opinions will not even make it clear there is a rule being applied at all. Not all judicial opinions, or legal writing of any genre, always follow best practices.

Legal rules can be mandatory, prohibitory, or discretionary. If a rule is mandatory, then it requires steps that must be followed and will usually use the words “must” or “shall.” If a rule is prohibitory, then it is forbidding certain types of actions and will usually use the words “must not” or “shall not.” If a rule is discretionary, then it is allowing choice of conduct and will usually use the word “may.”

In the outline below, I have described the most common types of rules you will encounter. Please note that these are not the only kinds of rules that exist, nor are these the only arrangements of these specific kinds of rules that exist. The formulations provided in the description are illustrative and not exhaustive.

Types of Rules

Rule with Elements - Conjunctive

A conjunctive rule with elements is one when all components in the rule must be met for the outcome to occur. A conjunctive rule with elements can have one or more elements that must be met. This is one of the strictest kinds of rules.

Examples

- An outcome is Z if A.
- An outcome is Z if A, B, and C are present.
- An answer to a complaint must be filed within 30 days.
- To establish burglary, the state must show all of the following:
 1. Breaking
 2. Entering
 3. Dwelling house
 4. Of another
 5. With the intent to commit therein

- a. A theft or
- b. felony

Rule with Elements - Disjunctive

A disjunctive rule with elements is when at least one of multiple components in the rule must be met for the outcome to occur. A disjunctive rule with elements can have two or more elements that comprise the rule with at least one of those elements being required to be met.

Examples

- An outcome is Z if A or B is present.
- An outcome is Z if A and B or C is present.
- A student violates the Honor Code if he/she:
 - 1. Knowingly makes a materially false or deceptive statement to a person in authority in connection with an academic matter;
or
 - 2. Engages in conduct in connection with an academic matter either
 - a. For the purpose of gaining an unfair advantage over another student, or
 - b. Under circumstances such that a reasonable law student would know that the conduct was likely to result in an unfair advantage.

Rule with Factors - Balancing

A balancing rule with factors is when there are factors to be considered, where some factors are in favor of reaching outcome Y and some factors are in favor of reaching outcome Z. With this rule, weigh the factors both in terms of quantity for each side and also in terms of the strength of each factor for its side. Not all factors must be present. This kind of rule can have either an exclusive list of factors (only these factors shall be considered) or an inclusive list of factors (things to be considered include but are not limited to).

Examples

- General
 - A, B, and C favor outcome Y. D, E, and F favor outcome Z. A, B, and C are all present. B is particularly strong. Only E and F are present. F is particularly weak. Therefore, the outcome in the balancing test should be Y.
 - Thus, the permissibility of a particular law enforcement practice is judged by balancing its intrusion on the individual's Fourth Amendment interests against its promotion of legitimate governmental interests. Delaware v. Prouse, 440 U.S. 648, 654 (1979).
 - A risk is unreasonable and gives rise to a duty to act with due care if the foreseeable probability and gravity of harm posed by defendant's conduct outweigh the burden upon defendant to engage in alternative conduct that would have prevented the harm. McCall v. Wilder, 913 S.W.2d 150, 153 (Tenn. 1995).
- Exclusive
 - Missouri utilizes a balancing test to determine the extent of the prejudice, if any, that the delay caused. There are four factors to this test which must be considered on a case-by-case basis: 1) the length of the delay; 2) the reason for the delay; 3) the defendant's assertion of the right; and 4) the prejudice to the defendant. *Id.* Applying these factors to the facts before us, we find no prejudicial delay. State v. Smith, 849 S.W.2d 209, 213 (Mo. Ct. App. 1993) (citations omitted).
- Inclusive
 - Rather, we adopt the test expressed in A-S-P Associates that the diminution in value of an individual's property should be balanced against the corresponding gain to the public from such regulation. Some of the factors which should be considered and weighed in applying such a balancing test include such private concerns such as whether the regulation results in confiscation of the most substantial part of the value of the property or deprives the property owner of the property's reasonable use, and such public concerns as the purpose of the regulation and the manner in achieving a permitted purpose. State v. Jones, 305 N.C. 520, 530, 290 S.E.2d 675, 681 (1982).

Rule with Factors - Totality of the Circumstances

A totality of the circumstances rule with factors is when there are a number of factors to be considered and no certain number of factors must exist but instead the rule looks at “the whole picture.” This is one of the most expansive and “squishy” types of rules because it allows the factfinder to consider all kinds of things. This kind of rule can have either an exclusive list of factors (only these factors shall be considered) or an inclusive list of factors (things to be considered include but are not limited to).

Examples

- General
 - A, B, C, D, H, K, and L are all considered and look like, weighed together, it makes sense to reach outcome Z.
 - The determination of whether a seizure has occurred is a fact-intensive analysis in which a reviewing court must consider the totality of the circumstances. In examining the totality of the circumstances, a court must look to numerous factors, including the time, place and purpose of the encounter, the words used by the officer, the officer's tone of voice and general demeanor, the officer's statements to others present during the encounter, the threatening presence of several officers, the potential display of a weapon by an officer, and the physical touching by the police of the citizen. State v. Alberti, 13-205, p.7-8 (La. App. 5 Cir. 10/9/13); 128 So. 3d 351, 356 (citations omitted).
- Exclusive
 - When assessing voluntariness pursuant to the totality of the circumstances, a court should look at the following factors: the duration and means of the interrogation; the physical and psychological state of the accused; the conditions attendant to the detention; the attitude of the interrogator; and any and all other factors that could drain a person's ability to withstand suggestion and coercion. Commonwealth v. Nester, 709 A.2d 879, 882 (Pa. 1998) (citations omitted).
- Inclusive
 - After careful consideration, we adopt the ‘totality of the circumstances’ standard. While we agree ability to pay is a primary factor in determining whether ‘substantial abuse’ occurred, we believe other relevant or contributing factors, such as unique hardships, must also be examined before dismissing a Chapter 7 petition. Conversely, where an inability to pay exists, we believe other factors may nevertheless establish substantial abuse. We recognize the factors articulated by the other courts as instructive, but conclude they are not inclusive of all factors considered. A substantial-abuse analysis must be made on a case-by-case basis. In re Stewart, 175 F.3d 796, 809 (10th Cir. 1999).

Rule with Factors - Sliding Scale

A sliding scale rule with factors is when there are a number of factors to be considered, both in terms of presence and in terms of strength. Differs from balancing test, although the difference can feel nuanced. This kind of rule can have either an exclusive list of factors (only these factors shall be considered) or an inclusive list of factors (things to be considered include but are not limited to).

Examples

- A+B definitely reaches outcome Z. A+b or a+B might reach outcome Z. a+b does not reach outcome Z.
 - Capital letters mean A LOT OF; lowercase letters means a little of.
 - So, if you have a lot of or strong evidence of both A and B, then you get to outcome B. However, depending on the amount or strength of (A+b) or (a+B), you *might* reach Z. If both do not have much (a+b), then you likely cannot reach Z.
- This sliding scale is consistent with well-developed personal jurisdiction principles. At one end of the spectrum are situations where a defendant clearly does business over the Internet. If the defendant enters into contracts with residents of a foreign jurisdiction that involve the knowing and repeated transmission of computer files over the Internet, personal jurisdiction is proper. At the opposite end are situations where a defendant has simply posted information on an Internet Web site which is accessible to users in foreign jurisdictions. A passive Web site that does little more than make information available to those who are interested in it is not grounds for the exercise [of] personal jurisdiction. The middle ground is occupied by interactive Web sites where a user can exchange information with the host computer. In these cases, the exercise of jurisdiction is determined by examining the level of interactivity and commercial nature of the exchange of information that occurs on the Web site. Haas v. Four Seasons Campground, Inc., 2008 PA Super 136, ¶ 13, 952 A.2d 688, 694 (Pa. Super. Ct. 2008).
- Both procedural and substantive unconscionability must be present before a contract or clause will be held unenforceable. However, there is a sliding scale relationship between the two concepts: the greater the degree of substantive unconscionability,

the less the degree of procedural unconscionability that is required to annul the contract or clause. Ellis v. McKinnon Broad. Co., 18 Cal. App. 4th 1796, 1804, 23 Cal. Rptr. 2d 80, 83 (Cal. App. Dep't Super. Ct. 1993) (citations omitted).

- This process involves engaging in what we term the sliding scale approach; the more likely the plaintiff will succeed on the merits, the less the balance of irreparable harms need favor the plaintiff's position. Ty, Inc. v. Jones Grp. Inc., 237 F.3d 891, 895 (7th Cir. 2001) (citations omitted).

Rule with Exceptions

A rule with exceptions is when an outcome is met unless a certain condition exists, or when an outcome is not met unless a certain condition exists. Any of the above rules can have exceptions.

Examples

- The privilege of an infant to avoid contracts which are injurious to him, and rescind those which are not, is not an exception to a general rule, but a general rule with exceptions. The law assumes the incapacity of an infant to contract. It also recognizes the fact that the limitation of infancy is arbitrary; that it is indispensably necessary that an infant should be at liberty to contract for necessities; and that he may happen to make other contracts which will be beneficial to him. It does not therefore forbid him to contract, but gives him for his protection the privilege of avoiding contracts which are injurious to him and rescinding all others, whether fair or not, whether executed or executory, and as well before as after he arrives at full age—excepting from the operation of the privilege only contracts for necessities, contracts which he may be compelled in equity to execute, and executed contracts where he has enjoyed the benefit of them and cannot restore the other party to his original position. Riley v. Mallory, 33 Conn. 201, 206 (1866).
- A person shall not be charged with or prosecuted for a criminal offense prohibiting the possession of a controlled substance or the possession of drug paraphernalia if:
 - (a) In good faith, medical assistance with a drug overdose is sought from a public safety answering point, emergency medical services, a law enforcement officer, or a health practitioner because the person:
 - (1) Requests emergency medical assistance for himself or herself or another person;
 - (2) Acts in concert with another person who requests emergency medical assistance; or
 - (3) Appears to be in need of emergency medical assistance and is the individual for whom the request was madeKy. Rev. Stat. Ann. § 218A.133 (West 2020).

To see an example of how Rule Synthesis works with several cases, please see Appendix D (Rule Synthesis Example).

Conclusion

The first step to good legal writing and correct legal analysis is to understand how to find the legal rule that needs to be applied. Become familiar with the different types of rule structures because it will make it easier for you to pull the rules from the sources of law you encounter.

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1.13: Summary of Law

A **Summary of Law** is both exactly what it says and also far more challenging to write than it sounds. There are times in legal practice when you do not have a specific fact pattern that you are analyzing and instead you are focused on determining what the law says to do with a particular piece of a legal issue. In essence, a Summary of Law is the written product of the process of rule synthesis.

This is the first test of your skills that you have been learning thus far in this course. Your goal is to properly identify the legal issue you are being asked to examine and then to use sources of law, such as statutes and case law, to provide guidance on how a person should approach assessing the legal issue.

Remember how our legal system is founded on the English common law system? An earlier case might have stated a legal rule that was sufficiently clear to answer that particular legal issue, but a later case had facts that were just different enough to create ambiguity or confusion in how the legal rule should not be applied, which required the later case to clarify or expand on the earlier case's legal rule.

In a Summary of Law, you are tracing how the law evolved and then reorganizing the material to produce a final product that is organized by topic rather than chronologically. Your job in this document is to do the “heavy lifting” for the reader and show clearly how and why the cases you discuss address the legal issue and answer the question posed. Put another way, your Summary of Law is where you demonstrate the work you did in finding and synthesizing the rule so that the reader does not have to conduct that process independently.

For your Summary of Law, you will have an introductory paragraph that provides the overall conclusion, the general rule, and the roadmap for the remainder of the document. For your body paragraphs, use a CRE-C structure. There is no Application section because in this document you are not applying the general rule to determine a specific outcome for a specific fact pattern. The Application section will come later in your case synthesis practice and your memoranda.

There is an example of Summary of Law in Appendix E that uses Unmarked Cases (Appendix A), Reading Cases (Appendix B), Briefing Cases (Appendix C), and Rule Synthesis Example (Appendix D) to write a Summary of Law showing how the author synthesized a rule from those cases.

Conclusion

The Summary of Law is the first building block of written legal analysis. Your understanding of where laws come from, practicing reading and briefing sources of law, and shifting focus from the sources of law to legal issues come together to let you find and synthesize legal rules and provide descriptions of the sources of law on which you rely to formulate your rule. Remember that a Summary of Law is like a geometry proof; you are showing the reader not just what the final answer is but also the steps you took along the way to reach your conclusion.

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1.14: Case Synthesis

What is Case Synthesis?

Case synthesis is the process you use to predict what the legal outcome should be for your particular current situation. Being able to synthesize past cases to predict the outcome for a current situation is a foundational precept of both legal writing specifically and legal analysis more generally. Remember that our legal system is based on precedent forming the foundation of predicting future outcomes. Case synthesis and rule synthesis are closely related; however, where “rule synthesis blends several cases to form one holistic rule, case synthesis” instead “blends several cases to identify a common denominator among the precedents that can serve as the basis of analogy.” David Romantz & Kathleen Elliot Vinson, Legal Analysis: The Fundamental Skill 40 (1st ed. 1998) (citations omitted). The specific and relevant facts of the past cases and the current situation are critical when synthesizing cases because it is the facts of each situation that determine the outcome of the rule. When you synthesize a rule from statutes and cases, you are identifying what test to be applied. Then, with case synthesis, you are identifying the likely outcome of a rule when applied in a specific situation.

Ways to Synthesize Cases

There are several approaches to analyzing cases to determine an outcome in a specific situation. The easiest way is to find several cases that have identical facts, identical reasonings, and identical holdings. Sadly, case synthesis is rarely as simple and straightforward. However, you need to compare facts, reasonings, and holdings in any type of analysis that you do. Finding what is the same (or similar) and what is different (or can be different) is essential to providing a likely prediction.

The first thing to look for across your cases you found when conducting your legal research is whether the cases articulate a similar rule that would answer the legal question in your current situation. This should go without saying, but you should only concern yourself with cases that are likely to address your legal question, meaning cases that dealt with the same legal issue that you are currently researching. You should sift extraneous cases out prior to beginning your case synthesis. When you synthesize cases, you should shift your thinking from seeing each case as its own unit and instead see the cases as supporting a rule or portion of a rule.

If you can find a set of cases that articulate a similar rule, the next step is to identify similar relevant facts across the cases. How do you know if the fact is relevant? Look to the court’s reasoning and the court’s holding to see which facts it stated it considered when applying the legal rule. Also read to see what facts the court must have assumed to be true to reach the conclusion that it did. You have to understand how the court weighed facts in the past to decide how to match facts in past cases to your current situation. Keep in mind that not all cases will consider all the same categories of facts. At this point, you should be keeping up with all categories of facts that the courts have used in their reasoning. Later, you will narrow them down.

Once you have identified relevant facts across your case set, you should then move on to comparing holdings in your set of cases. When the rule applied in cases is similar but the holding is different, ask yourself where the facts differed between the cases. Why did the court decide the cases differently? Correctly identifying where the difference in facts leads to different outcomes is the lynchpin in determining how to fact-match when conducting your analysis and determining your prediction. You will use those factual distinctions and compare it to your case to determine how the court would likely rule on your case.

While you performed your analysis of your case set, you should also have been keeping track of your findings. Two ways to organize your findings are to use an outline and to use a case chart. At this point, you have analyzed your case set and (1) confirmed each case is dealing with the same legal issue; (2) determined what facts the court considered relevant by examining the court’s reasoning in each case; and (3) compared holdings in each case to discover what factual differences lead to different outcomes. These three steps should determine how you organize your outline or your chart. Do not organize case by case! Your final written analysis should be organized by parts of the rule or by relevant facts and not cases, so go ahead and organize your thinking in the way your final product should be organized.

Please note this quick caution about case synthesis when looking at persuasive authority from other jurisdictions (which you will use when you write your brief in the spring). You will not fact-match when you are using cases from other jurisdictions; instead, you will policy-match. We will discuss this in more depth when you write your briefs, but I want to make sure to flag this for you when you consult this chapter while writing your brief.

To see an example of how Case Synthesis works with several cases, please see Appendix F (Case Synthesis Example).

Conclusion

Case synthesis is the process of using rule synthesis, where you find a generally applicable legal rule, to decide how that legal rule should be applied given a specific set of facts.

For Further Reading

David Romantz & Kathleen Elliot Vinson, Legal Analysis: The Fundamental Skill 33-54 (1st ed. 1998).

Gertrude Block, Effective Legal Writing: A Style Book for Law Students and Lawyers 160-65 (5th ed. 1999).

Helene Shapo, Marilyn Walter, Elizabeth Fajans, Writing and Analysis in the Law 78-83 (7th. Ed. 2017).

D. Schmedemann, C. Kunz, Synthesis: Legal Reading, Reasoning, and Communication 29-50 (5th ed. 2017).

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1.15: Parts of a Memo

Overview

Formal legal memoranda are one of the most common types of predictive writing that law students do. This type of document allows students to practice, refine, and demonstrate their grasps of core legal writing concepts such as reading and briefing cases, following rules for document design and organization, rule synthesis, case synthesis, use of analogy and distinction, and predicting legal outcomes. Memoranda are used as internal documents for an attorney to assess how a legal rule will likely be applied to a given set of facts.

There are several components that make up your formal legal memorandum: Header, Question Presented, Brief Answer, Statement of Facts, Discussion, and Conclusion. When writing your memorandum for this class, your final product will have a strict word limit. In the sections below, you will learn the purpose of each section, what you should include in it, during what part of your writing process I recommend you write that particular component, and how to format the component.

Header

The **header** in a formal legal memorandum should state to whom the memorandum is addressed, who wrote the memorandum, the date that the memorandum was provided to the recipient, and what the memorandum addresses.

Question Presented / Issue

The **Question Presented**, or **Issue**, tells the reader the legal issue to be answered and incorporates the major relevant facts that must be considered to determine the answer. You will have one Question Presented per legal issue being decided. So, if you have two legal issues, you will write two Questions Presented, with one Question Presented addressing each legal issue. If you have a legal issue that breaks down into two subparts, then you will have an overall Question Presented with two sub-questions presented. Your Question(s) Presented should provide a roadmap to the reader of what each legal issue to be answered in the discussion will be.

There are two different options to format a Question Presented. You can use the traditional under-does-when/whether-can-when model, or you can use the Deep Issue model proposed by Bryan A. Garner, [The Deep Issue: A New Approach to Framing Legal Questions](#), 5 Scribes J. Leg. Writing 1 (1994-95).

In the traditional model, under the legal rule, you state the legally significant facts and the legal question as one sentence. If you use a whether-can-when structure you will punctuate the sentence with a period rather than a question mark.

In the Deep Issue model, you are not constrained by one sentence. Id. at 4, 6. Instead, with a Deep Issue, you write three separate sentences: one that states the legally significant facts, one that states the legal rule, and one that states the legal question. Id. Your fact sentence or your rule sentence will go first depending on what is the more effective arrangement. Id. Your final sentence with the legal question will go last and it will end with a question mark. Id. Each Deep Issue should be no more than 75 words for all three sentences together. Id. at 5.

When you are writing your memorandum, plan to write a first draft of each Question Presented after you have completed your research and before you have written your Discussion. By using this order, you will be testing your understanding of the legal question and helping you determine the organization of the Discussion. However, after you have written the Discussion you should then revisit your Question Presented and confirm that it still accurately reflects how you wrote your Discussion. Your Questions Presented must be in the same order that the concepts are presented in your Discussion.

In the example at the end of the chapter, I show you one Question Presented using each model. However, when you write your formal memorandum, you should select one model to use.

Brief Answer / Conclusion / Short Answer

In a formal legal memorandum, your **Brief Answer** should be placed directly below your Question Presented and it should answer the Questions Presented. If you have multiple legal issues that require multiple Questions Presented, then you will generate a Brief Answer for each legal issue. The Brief Answer to each Question Presented should be placed in the same location within the list. For example, the answer to the first Question Presented should be placed first in the Brief Answer section, and the answer to the second

Question Presented should be placed second in the Brief Answer section. The first sentence of each brief answer should provide a direct response, such as “probably yes” or “probably no.” The remainder of the Brief Answer will explain the answer given in the first sentence.

You should plan to draft the Brief Answer after you have written your Discussion and after you have solidified your Question Presented. Just because you are writing this section later, however, does not mean it is any less important. Rather, you likely will not be certain of what your Brief Answer is until after you have completed your analysis and framed your question. What follows is an example of how to set up and format your Brief Answer.

For the header at the top of the section, you should use the same format for both the Question Presented and Brief Answer: use all caps, center the words, and underline them.

Statement of Facts

Your **Statement of Facts** section is where you tell the reader four main types of facts. First, you state the parties and their relationship both to one another and also to the legal question. You will also include the legally significant facts the reader needs to know to answer the legal questions, the key background facts to understand the entire picture, and the procedural facts that tell what actions, if any, have been taken in this situation.

For the header at the top of the section, you should use the same format as the Question Presented and Brief Answer: use all caps, center the words, and underline them.

The first paragraph of the Statement of Facts should identify the parties and establish their relationship both to each other and to the legal question. The reader needs a clear understanding of the players involved in order to understand why the facts being shared are relevant and to whom they matter. The remaining paragraphs should tell a story using the legally significant facts and key background facts. The facts should be presented as objectively as possible. Remember that your role is as an advisor when writing this memorandum, and it is part of your duty to accurately present information, even if certain pieces feel damaging to the client.

The Statement of Facts can be organized either chronologically or topically. As the writer, it is up to you to arrange the facts in a manner that makes the most sense for the reader to understand why the facts matter and how they fit into answering the legal question. What this arrangement will look like varies from legal question to legal question. Use your best judgment and think about what organization you, as a reader, would want to see. Do not write the Statement of Facts in the order in which you encounter the information in your provided materials. Rarely will a client give you the facts in a usable order. Likewise, the assignments that you receive during your legal writing classes also anticipate that you will use your judgment to rearrange the facts in a manner that best fits with the legal question.

To decide what facts are relevant, consider what facts you need to know to be able to solve the legal issue presented. Any fact that you think is important enough to be in your Question Presented should also be in your Statement of Facts. Another way to determine what facts are relevant are to articulate which facts, if changed, would modify the outcome of the legal question. Facts that explain the procedural history of the case, in broad strokes, are important. Dates are important if there is a timing issue. Facts that are irrelevant should not be included because they cloud the reader’s understanding and demonstrate that you do not have a strong grasp on what is important to determine this case.

The final paragraph of the Statement of Facts should consist of the actions that have thus far been taken in the current situation, including whether a lawsuit has been filed, if opposing counsel has given any deadlines for a response, or if there are any statutes of limitations that are about to run.

Finally, be sure that you only write facts in your Statement of Facts; it is not the place to argue, to draw legal conclusions, or to editorialize. The Discussion section of your memorandum will provide you ample opportunity to present your legal analysis and draw conclusions.

Plan to write your first draft of Statement of Facts after you have written your first draft of your Question Presented and after you have created an outline of your Discussion but before you write your Discussion. By writing your Statement of Facts before you write the entirety of your Discussion, you ensure that you have a solid grasp on what the facts are in this situation, which is key for providing effective legal analysis. After you have written your full Discussion, you should then go back and read through your Statement of Facts to confirm both that you have included all legally significant and key background facts that you used in your

Discussion and also that your organization of the facts matches with your Discussion organization in a way that will make the information most accessible to the reader.

Discussion

The **Discussion** section of your memo is where you tell the reader what your conclusion is to the legal question posed in the Question Presented and where you expand on your Brief Answer to support your conclusion. You will use a statement of the legal rule, an explanation of the rule being used in past cases, and then an application of the rule to the current factual situation to “show your work” for your conclusion.

For the header at the top of the section, you should use the same format as the Question Presented and Brief Answer: use all caps, center the words, and underline them.

The first part of your Discussion section is your Introduction, where you lay the groundwork for the reader to understand what legal issue is being addressed. First, summarize the general legal rule. This rule can either be from a statute, a rule that you have synthesized, or both.

Then, explain which parts of the legal rule are not at issue, if any. Sometimes the legal dispute is only about one part of how to apply the rule, and you do not want to spend time addressing anything that is not in dispute. Explain what facts can be taken as “givens,” which means facts that all parties agree exists and has a particular type of legal impact. Be sure that, when explaining what is not going to be discussed, you explicitly state why these are not at issue.

Next, narrow your focus down to what part of the legal rule is at issue and give the narrowed rule that the Discussion will apply to predict the outcome. This narrowed rule serves as a roadmap to the reader to navigate through the legal analysis. As a reminder, this roadmap should also complement the order in which you present your Question Presented and your Brief Answer. Remember to include appropriate citations when you state your rule!

After your introductory paragraph, write your legal analysis using your legal writing organizational structure (in this class, CREAC). Your Discussion follows the order of issues that you laid out in your roadmap. Each issue will have its own CREAC (Conclusion, Rule, Explanation, Application [including counteranalysis], and Conclusion [narrowed]).

Your Conclusion acts as your topic sentence and signals to the reader how to consider the next paragraphs within the context of the legal issue. The rest of the CREAC-block will guide your reader through how you reached this Conclusion.

The Rule in the CREAC-block will be the part of your overall rule that is applicable to the particular part of the legal issue you are addressing, as defined by your Conclusion in the CREAC-block.

For your Explanation section, use helpful factual illustrations of how the rule was applied in past cases. Be sure to cite cases when necessary, which likely will be after every sentence in this section. Show how the authorities demonstrate the rule is what you have stated it is through explaining how the rule has been applied in past cases. Synthesize the explanation in a logical way that benefits your reader’s understanding of the legal issue rather merely providing case summaries. You might have to explain the rule’s purpose and the policies it serves. Be sure to cite a source for each statement of a rule, a holding, the court’s reasoning, or the facts from a case. Finally, remember that you will not yet be discussing the present legal situation in the Explanation section.

In the Application section, use fact-matching, analogy, and distinction to show why the past cases predict the outcome you have stated will occur in the present situation. Here, you should be deftly weaving the past cases and the current situation together. Keep in mind that you are showing your work for how you reached your Conclusion, so you want to be as explicit and clear as you can. Do not leave any connecting work for the reader to do alone. You should provide each connection.

Also in your Application section you will provide a counteranalysis that presents what could be another logical outcome in this case. The counteranalysis has to be believable, and you should also show that it is the weaker of logical outcomes. Again, use analogy and distinction, weaving the past cases from your Explanation section into the facts of the current situation to show how “that other outcome” is less likely than the conclusion you draw. The counteranalysis should not be lengthy but it must be complete.

Finally, your Conclusion [narrowed] closes the analysis for this issue by restating your Conclusion from the beginning and then adding in the specific facts and legal understandings that are needed. In some ways, this will resemble your Brief Answer, but you should not copy and paste your Brief Answer into this section.

Repeat your analysis using CREAC for each legal issue that must be addressed by the memorandum.

There will be times when your Conclusion and Rule are stated in the same sentence. For instance, if you are discussing whether a party consented to a touching, you might say, “Because Sheila agreed that Brandy could braid her hair, Sheila cannot now claim that Brandy committed battery.” Also, there will be times that you will provide a single Conclusion and Rule that will have more than one Explanation section and more than one Application section. If you have a rule that has multiple elements or factors, then you will need to address each piece in its own Explanation and Application section.

The bulk of your writing time will be spent crafting, drafting, and refining the Discussion section. I recommend creating an outline of your Discussion after you have written your first draft of your Question Presented. Once the outline feels complete, then write the Statement of Facts. After you have your first draft of your Statement of Facts, return to your Discussion outline and write a complete first draft of your Discussion section.

There is an example Memorandum in Appendix G that uses Unmarked Cases (Appendix A), Reading Cases (Appendix B), Briefing Cases (Appendix C), and Rule Synthesis Example (Appendix D) to write a Memorandum showing how the author synthesized a rule from those cases and then applied the rule to a particular factual scenario.

Conclusion

Your **Conclusion** section of your memorandum (not to be confused with the Conclusion sections in your CREAC legal analysis) ties everything together by stating the overall conclusion to the legal issue using the parties’ names, combining the separate CREACs into one, and providing the reasons and relevant facts that support the outcome. The Conclusion will be more thorough than the Brief Answer but will be significantly shorter than the Discussion.

For the header at the top of the section, you should use the same format as the Question Presented and Brief Answer: use all caps, center the words, and underline them.

Write this section once you have completed all the other sections of the memorandum. You might not be certain how your Conclusion should look until after you have thought through the rest of the sections. However, be careful that you do not rush the Conclusion drafting process. Ending on a strong note with a well-crafted Conclusion enhances a memorandum, while rushing to tie everything together leaves a sour note in the reader’s mind.

Template Components

Header

MEMORANDUM

TO: Senior Partner

FROM: XXXX

DATE: November 25, 2019

RE: Client Name’s specific legal question that you have been asked to address in sufficient detail so that if someone picks up the memorandum a year later, they can look at this line and know what it is about.

Question Presented

I. **Under** the legal rule that controls this issue **does** the legal question that needs to be answered occur **when** specific legally significant facts are present?

II. This is the legal rule that controls this issue. These are the specific legally significant facts. What is the answer to the legal question?

Brief Answer

BRIEF Answer

I. Probably yes. Under the legal rule, this is the answer to the legal question when these specific legally significant facts are present.

II. Probably no. Under the legal rule, this is the answer to the legal question when these specific legally significant facts are present.

Step-By-Step

- Read through all given instructions and materials
- Take notes on parties, facts, authorities, procedural history etc
 - Make a timeline of the facts
 - Write down any questions you have
- Ask your professor questions if you are confused
- Research
 - Make a research plan
 - Determine how you will organize your research
 - Begin research
 - Analyze research and determine what sources you will keep/omit
 - Form narrowed legal rule
- Begin Formatting
- Create Header
- Write a first draft of your QP
- Create an outline of your Discussion
 - Introduction
 - CREACs, including Counteranalysis
 - Conclusion
- Write first draft of Statement of Facts
- Write a first draft of the Discussion- spend the bulk of your time here
 - Write Introduction section
 - Include a narrowed rule
 - Include a roadmap for organization of the Discussion
 - CREACs, Including Counteranalysis
 - Conclusion
- Revisit your QP and confirm that it still accurately reflects how you wrote your discussion
- Draft your Brief Answer
- Revisit the Statement of Facts and confirm all facts used in Discussion are included in brief
- Revise and Edit
 - Consistency and cohesion
 - Large-scale organization
 - Small-scale organization
 - Citation
 - Grammar/Punctuation/Style/ Spelling
- Read it out loud
- Edit again
- Turn in when you're proud of it

Conclusion

The components we have just discussed in such detail above are not going to be required, or even desired, for every memorandum you will be asked to produce for internships, externships, clinics, and associate positions. Instead, your supervisor might ask you to produce a document that is quicker to skim through or a checklist that can be used in court. However, the primary purpose behind the memorandum (to predict a legal outcome) and the method you use to produce the memorandum (where you examine past cases to determine how to apply the law to the current set of facts) still remain. If you can produce a quality formal legal memorandum, then you are in an excellent position to create these other types of practice-oriented predictive writing documents.

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1.16: Transitions and Signposting

Using transitional words and phrases as signposts in your writing will help guide the reader through your analysis. Remember that you want to make your writing as accessible as possible to your reader. The reader, using your transitions, can better follow your analysis because you have shown the reader how each sentence relates to the next. The reader will find your writing to be more credible because the reader will not struggle to understand your point.

You do not need to include a transition with every sentence! This will clutter your writing and make it more difficult to understand your analysis. Instead, use transitions when you want to signal that you are

1. Moving on to the next item in a list
2. Providing an example
3. Generalizing
4. Analogizing or comparing
5. Presenting an opposing viewpoint
6. Emphasizing a particular thought
7. Expanding to explain intricacies of a larger concept
8. Preempting a counteranalysis or counterargument
9. Concluding a piece of analysis or argument

Below are lists with suggested words and phrases you can use to signpost in your writing.

Sequencing

After Finally Initially

Before First, second, etc. Last

During Further Later

Meanwhile Subsequently Until

Next Then

Since To begin with

Introducing an Example

As in In particular Say

For Example Like Such as

For Instance Namely To demonstrate

Including Notably To illustrate

Generalizing

As a rule In general Usually

For the most part In most cases

Generally On the whole

Analogy/Comparison

Also Here Much like

And Identically On one hand

As In comparison Similarly

Comparatively In like manner To

Compared to In the same way Together with
Compared with Just as Too
Equally Likewise

Contrast/Opposition

Alternatively Despite Notwithstanding
Although Even though On the contrary
At the same time However On the other hand
Besides In contrast Rather
But Nevertheless Regardless
By contrast Nonetheless Though
Conversely Not Unlike

Emphasis

Additionally Especially Indeed
Again Even more In effect
Apart from this Explicitly In fact
By analogy Furthermore Markedly
Certainly Importantly Moreover
Namely Significantly To emphasize
Particularly Specifically

Explanation of Intricacies

Additionally Frequently Moreover
Also Furthermore More specifically
And In detail Namely
Another reason In like manner Nor
As well In other words To clarify
Besides In particular To explain
By the same token In relation to

Preemption of Counteranalysis or Counterargument

All the same Even assuming Though some might argue
Although Even if While it could be
At the same time Even though
Despite Notwithstanding

Conclusion

Accordingly
As a consequence

Because

Finally

In conclusion

In summary

Lastly

On balance

Overall

So

Therefore

Thus

To conclude

To summarize

Ultimately

Conclusion

Keep in mind that your written product should be designed to serve as a tool that the reader can use to make a decision. Complement your roadmap in your introductory paragraph by providing transitions and signposts as you proceed through your legal analysis to guide the reader.

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1.17: Persuasive Writing

What is different between predictive and persuasive writing?

Your written product shifts from advisory to advocacy. Persuasive writing argues for a particular outcome that will benefit the client. When you write documents that should persuade, you have a position to promote, and your writing should reflect that. Later in this chapter, we will look at tools that you will use to present facts and analysis in ways that can convince the reader to agree with you.

What is the same with both predictive and persuasive writing?

You still have to tell the truth and you cannot omit legally or factually significant details because they are not beneficial for your client. You still will use your tools of rule and case synthesis and you will still organize your analysis using CREAC. None of the basic analytical skills change; it is the presentation of what your analysis reveals that you alter.

What are types of persuasive legal documents?

Types of persuasive documents include, but are not limited to:

1. Demand letters
2. Settlement letters
3. Complaint
4. Answer
5. Motions
6. Trial Briefs
7. Appellate Briefs

How do I persuade in my writing?

There are three common methods to persuade your audience: *logos*, or logic; *pathos*, or emotion; and *ethos*, or credibility. Logical arguments appeal to the reader's logical side through incisive legal analysis and reasoning using the CREAC structure. Emotional arguments can drive the reader to want to give your side the relief it is seeking through an effective and cohesive narrative because it feels right. Finally, you maintain credibility with your audience through being honest, accurate, and professional; logic and emotion do no good if the reader does not trust you. Through your writing you can use each of these methods to appeal to your reader to find in your favor. There are many tools that you can use to make your writing persuasive and still remain logical and credible. Below is a list of tools and a quick explanation of each one.

Tools to Persuade

Theory of the case: Developing and using a cohesive theory throughout your brief helps your reader understand the law and facts in the light in which you want the reader to see them. A successful theory captures what is essential for your side to win and then weaves those essential points into the entirety of the brief. Identify your strongest points first. Also identify the easiest-to-understand argument for why your side wins. By effectively developing and using a theory of your case, you will ensure that you have a coherent brief that has no holes or gaps and that explains everything the reader needs to know to find for your side.

Structure and Organization: First, follow the format that you are told to use by the local rules (or professor's instructions). Use your CREAC structure for the argument and citation of authority. Lead with your strongest argument. Focusing on maximizing your side's strengths and minimizing your side's weaknesses. Do not make every possible argument that shows your side should prevail; instead, develop the arguments that are most probable to lead to success.

Tone and Style: Write positively and affirmatively. Argue why your side wins, not why the other side loses. Do not use rhetorical questions. Avoid overly dramatic statements because they will reduce your credibility and fail to progress your argument. Stay focused on the case and why your side should prevail. Do not attack the parties, opposing counsel, judges, or any other person.

Primacy and Recency: What readers encounter first will shape how they perceive the remaining information conveyed; use that to your advantage. Show your strongest points or facts first. What readers encounter last will cement how they perceive the previous

information received; use that to your advantage as well. End on a strong note with a conclusion that clearly explains why your side should prevail/

Sandwiching Bad Facts: There will always be facts that are not ideal for your side. You still have to disclose them. However, you can choose where you share those facts. The best place is to put a bad fact between good facts! For instance, if I want my mom to let me go to the mall, then I would say, “Mom, Cheryl says her mom can drive us to the mall! My room is not picked up like you asked. However, I have cleaned the bathroom and vacuumed the hallway!”

Active versus passive voice: Yes, you should always use the active voice when you can. However, using passive voice can be effective when you want to place distance between the actor and the action. For instance, “I ran over your dog” hurts a lot worse than “Your dog was run over by my car.”

Remember your audience: When asking the court to find in your favor, use phrases like “the court should” rather than “the court must.” No court wants to be told what to do. Any audience prefers easy-to-follow and well-thought-out legal arguments that do the heavy lifting for the reader. What will be an appropriate emotional appeal will depend on who is reading your persuasive piece. And, finally, remember that you must maintain your credibility at all times.

What is policy?

Policy is the reason, goal, or purpose for why the law is put together in a certain way and why it requires what it does. Policies highlight a group’s values and priorities, including social and economic concerns. Policies also provide the rationale for having the law insist on certain types of outcomes.

There are four major types of policy arguments:

1. Normative

- a. The court should consider how the outcome will support our shared values.
- b. “[I]t is the paramount public policy of this State that courts will not lightly interfere with the freedom of parties to contract on any subject matter, on any terms, unless prohibited by statute or public policy, and injury to the public interest clearly appears.” Atl. Specialty Ins. Co. v. City of Coll. Park, 851 S.E.2d 189, 195 (Ga. Ct. App. 2020) (citation omitted).
- c. “If the public policy of Georgia does not permit parties to contract to keep embarrassing-but-discoverable materials secret, then with greater force, that public policy does not permit parties to enter into an enforceable agreement to keep arguably criminal matters secret in the face of an official investigation.” Camp v. Eichelkraut, 539 S.E.2d 588, 597–98 (Ga. Ct. App. 2000).

2. Economic

- a. The court should consider how the outcome will impact society through the monetary and objective consequences of its decision.
- b. “Antitrust laws in general, and the Sherman Act in particular, are the Magna Carta of free enterprise. They are as important to the preservation of economic freedom and our free-enterprise system as the Bill of Rights is to the protection of our fundamental personal freedoms. And the freedom guaranteed each and every business, no matter how small, is the freedom to compete—to assert with vigor, imagination, devotion, and ingenuity whatever economic muscle it can muster. Implicit in such freedom is the notion that it cannot be foreclosed with respect to one sector of the economy because certain private citizens or groups believe that such foreclosure might promote greater competition in a more important sector of the economy.” United States v. Topco Assocs., Inc., 405 U.S. 596, 610 (1972).
- c. “The economic interests of the State may justify the exercise of its continuing and dominant protective power notwithstanding interference with contracts.” Home Bldg. & Loan Ass’n v. Blaisdell, 290 U.S. 398, 437 (1934).
- d. “Parties generally favor arbitration precisely because of the economics of dispute resolution. (‘Arbitration agreements allow parties to avoid the costs of litigation, a benefit that may be of particular importance in employment litigation, which often involves smaller sums of money than disputes concerning commercial contracts’). As in any contractual negotiation, a union may agree to the inclusion of an arbitration provision in a collective-bargaining agreement in return for other concessions from the employer.” 14 Penn Plaza LLC v. Pyett, 556 U.S. 247, 257 (2009) (citation omitted).
- e. “Where loss of a limb is involved at an arbitrary point in time, here 90 days, the insured under these cases is confronted with the ugly choice whether to continue treatment and retain hope of regaining the use of his leg or to amputate his leg in order to be eligible for insurance benefits which he would forgo if amputation became necessary at a later time. We find an insurance

limitation forcing such a gruesome choice may be unreasonable and thus may be void as against public policy.” Strickland v. Gulf Life Ins. Co., 240 Ga. 723, 725 (1978).

3. Institutional

- a. The court should consider what its place is within the governmental system and address whose job it is to make the rule when deciding the outcome.
- b. “We stress, finally, that §8772 is an exercise of congressional authority regarding foreign affairs, a domain in which the controlling role of the political branches is both necessary and proper. In furtherance of their authority over the Nation’s foreign relations, Congress and the President have, time and again, as exigencies arose, exercised control over claims against foreign states and the disposition of foreign-state property in the United States.” Bank Markazi v. Peterson, 136 S. Ct. 1310, 1328 (2016) (citations omitted).
- c. “It contains no words of command which would invade the province of the judiciary or would delegate to the judiciary the legislature’s duty. ‘It is always the duty of a court, in construing a statute, to ascertain and give full effect to the legislative intent....’” In that case, the caption of the act contained an expression by the legislature of the act’s purpose and this Court suggested that in construing a doubtful statute there was ‘no better source to which a court may go for the purpose of finding the legislature’s meaning of an act passed by it.’ The present case may contain that ‘better source’ since the legislature has been explicit in the body of the statute itself in stating its intent that the admission of expert testimony in the courts of this State be governed by the strictest standards available.” Mason v. Home Depot U.S.A., Inc., 283 Ga. 271, 277–78 (2008).
- d. “However, in answer to the question of whether or not to recognize a ‘wrongful birth’ action, the majority of courts that have addressed the question have answered in the affirmative. In spite of the widespread recognition and, in fact, because of that recognition and the confusion which has followed in its wake, we hold that ‘wrongful birth’ actions shall not be recognized in Georgia absent a clear mandate for such recognition by the legislature.” Atlanta Obstetrics & Gynecology Grp. v. Abelson, 260 Ga. 711, 714 (1990) (citation omitted).
- e. “The legislature recognized this as a subject for legislation, and passed the act of 1887, providing a penalty in case any message is not duly transmitted and delivered. This act gives a conventional redress of some money value, and is, perhaps, the best remedy that could be devised. It provides a penalty for punishment of the wrong-doer.” Chapman v. W. Union Tel. Co., 88 Ga. 763, 776 (1892).
- f. “It ought seldom or ever to be decided, in *a doubtful case*, that a law is void for its repugnance to the Constitution. And it is not on slight implications and vague conjectures that the Legislature is to be pronounced to have transcended its powers. On the contrary, the opposition between the law and the Constitution should be such, that the judges feel a clear and strong conviction of their incompatibility with each other. The presumption is in favor of every legislative act, and the whole burden of proof lies on him who denies its constitutionality. These doctrines have been repeatedly advanced by the highest judicatory in the nation.” Nunn v. State, 1 Ga. 243, 246 (1846) (citations omitted).

4. Judicial Administration

- a. The court should consider how the outcome will affect how courts operate in the future and whether it will impact the ability of courts to achieve justice.
- b. “[A]lthough a court may exercise its inherent discretion to resolve matters in the interest of judicial economy, [cit.], the goal of judicial economy cannot justify sacrificing the rights of the parties. [Cit.]’ Nor can it justify an appellate court in usurping the role of the trial court. ‘An appellate court should not ... substitute itself as the initial finder of fact to reach an issue not properly before it’” Harper v. State, 283 Ga. 102, 104 (2008) (citations omitted).
- c. “Although this case falls within none of the abstention categories, there are principles unrelated to considerations of proper constitutional adjudication and regard for federal-state relations which govern in situations involving the contemporaneous exercise of concurrent jurisdictions, either by federal courts or by state and federal courts. These principles rest on considerations of ‘[wise] judicial administration, giving regard to conservation of judicial resources and comprehensive disposition of litigation.’” Colorado River Water Conservation Dist. v. United States, 424 U.S. 800, 817 (1976) (citations omitted).
- d. “This Court also has a significant interest in supervising the administration of the judicial system. See this Court’s Rule 10(a) (the Court will consider whether the courts below have ‘so far departed from the accepted and usual course of judicial proceedings . . . as to call for an exercise of this Court’s supervisory power’). The Court may use its supervisory authority to invalidate local rules that were promulgated in violation of an Act of Congress. The Court’s interest in ensuring compliance with

proper rules of judicial administration is particularly acute when those rules relate to the integrity of judicial processes.”

Hollingsworth v. Perry, 558 U.S. 183, 196 (2010) (citation omitted).

Where do I find policy?

There are a variety of places you can find policy if you know how to look. If only the courts through their judicial opinions would always brightly signal POLICY HERE, our jobs would be a lot easier. However, as with most things in law, it is not that simple. Sometimes courts will say something like, “our state’s policy is” or “we have long valued”; each of these is an excellent cue that a policy consideration is about to follow. Statutes can contain sections that give the rationale for their enactment, and you can use this to determine what the law is prioritizing.

Most often you will need to read the cases carefully to determine what the policy goals are. Look at what facts the court considers when conducting its reasoning. Is it valuing protecting parental rights, promoting economic freedom, or providing unfettered access to resources? Remember that policy is the *why* the law exists, so look for explanations to support why the court reached the outcome it did. Put another way, look for how the court explains why it values certain outcomes over others or why the reasoning it uses achieves the right outcome.

When you are looking for policy, it might be easy to find or you might have to hunt for it. Comb through the cases and the statutes to find the *why*, and you will have located the policy arguments to make.

Where do I write about policy?

When you are writing about policy arguments, they should go after your fact-based and law-based arguments. Within your CREAC-block, your policy arguments will go into your E and A sections. In the E sections, you will use cases from other jurisdictions to show how particular policy considerations in those jurisdictions led to particular outcomes. Then, in the A sections, you will show how the outcomes in those cases, relying on policy considerations, can inform the court in your current situation what the right outcome should be.

When you want the court to use a particular persuasive authority to come to an outcome you like, you should show how the policy considerations in that case are similar to policy considerations in the mandatory authorities by demonstrating how the policies in both value similar things. This showing of similarity will mean that you can use the positive persuasive authority to inform the outcome in the current situation because the policies match. Then you link the mandatory authority to your current situation to ask for your desired outcome.

When you do not want the court to use a particular persuasive authority to come to an outcome because you do not like that outcome, you should show how the policy considerations in that case are inapplicable to the mandatory authorities by demonstrating the policy considerations are different and therefore do not value similar things. This showing of inapplicability will mean that you cannot use the negative persuasive authority to inform the outcome in the current situation because the policies do not match. Then, you state the policy considerations in the mandatory authority that do reach the outcome you desire.

Conclusion

Persuasive writing is one of the primary forms of analysis and writing that lawyers perform. Remember that when you are asked to complete a persuasive writing task, you know what the legal conclusion should be. When writing persuasively, you are showing the reader how the path through legal analysis leads to the destination that best benefits your assigned position.

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1.18: Parts of an Appellate Brief

Overview

There are several components that make up your Appellate Brief: Title Page; Table of Contents; Table of Authorities; Statutes Involved; Standard of Review; Question Presented; Statement of Facts; Summary of Argument, Argument and Citation of Authority; Point headings that are within Argument section; Conclusion; Closing; and Signature Block.

In the sections below, you will learn the purpose of each section, what you should include in it, during what part of your writing process I recommend you write that particular component, and how to format the component.

Title Page

The **title page** is the front page of your brief and it contains the case name, the appellate court case number, the lower court and its case number from which the case is being appealed, and a signature block. Make sure you check the local rules each time, just in case the court you will be filing in has different or updated requirements. For your brief in this class, you will sign your signature block using your blind grading number. An example title page can be found at the ends of the chapter.

Table of Contents

The **Table of Contents** contains a list of everything in your brief and indicates the page number on which each section starts. Your Table of Contents will include the Table of Contents; Table of Authorities; Statutes Involved; Standard of Review; Question Presented; Statement of Facts; Summary of Argument; Argument and Citation of Authority; Point headings that are within Argument section; Conclusion; and Appendix. Make sure that you correctly identify the starting page of each section in the Table of Contents. You should format the Table of Contents in the beginning of your brief-writing process. You can either use your word processor to automatically insert page numbers tied to your sections or you can fill in the page numbers once you are finished making all changes to the brief. An example Table of Contents can be found at the end of the chapter.

Table of Authorities

The **Table of Authorities** contains a list of every source of law you use in your brief, from Statutes Involved through Argument, and the pages on which that source can be found. Each source of law should be properly cited using the full citation. The Table of Authorities allows the reader to see what sources of law you rely on in one place and it allows the reader to go to a specific source of law for closer inspection. You must include every source of law you use, whether it be a statute, case, or secondary source.

Organize your Table of Authorities using the following order:

1. Mandatory authority statutes in numerical order
2. Mandatory authority cases from your jurisdiction in alphabetical order
3. Persuasive authority cases from other jurisdictions in alphabetical order
4. Persuasive authority statutes in numerical order
5. Rules in numerical order
6. Other authorities cited in alphabetical or numerical order as appropriate

Some cases, like your lead mandatory authority case, you will cite throughout your brief. For any source you cite on five or more pages, use the term passim, Latin for “here and there,” rather than listing page numbers. If you are referring to a case but are not including its citation because you have already extensively discussed the case (this is most likely to occur in your A section in your CREAC-block), you still should include the pages on which it appears in the Table of Authorities.

If you are going to manually input your page numbers, format the Table of Authorities at the same time that you format your Table of Contents. List all the cases you think you will use and be sure they are in proper citation form. You can fill in the page numbers once you are finished making all changes to the brief. Make sure to cross-reference your Table of Authorities with your Argument section to ensure that you do not include any cases that you did not end up using. If you are going to use your word processor to automatically insert page numbers tied to your sources, you should complete this task last because of the coding in the software and potential for error if you change the document after inserting the Table of Authorities. An example Table of Authorities can be found at the end of the chapter.

Statutes Involved

The **statutes involved** section lists what statutes, if any, are directly applicable to determining the legal issue in the case. There are not always statutes involved. Sometimes you will have a statute that you are using to argue for a particular position, but that alone is not sufficient to require the statute to be listed in statutes involved.

After you have completed your legal research you should be able to state with certainty whether there is a statute involved. At that point, draft this section. Insert the language from the statute verbatim and then properly cite the statute. If the statutory language is lengthy then you can attach it as an appendix. If you chose to do this, be sure that you tell the reader that the full language is in the appendix and include the appendix in your Table of Contents.

Standard of Review

Standard of Review, Black's Law Dictionary (11th ed. 2019), defines **standard of review** as “[t]he criterion by which an appellate court exercising appellate jurisdiction measures the constitutionality of a statute or the propriety of an order, finding, or judgment entered by a lower court.” If you think that definition is dense and obtuse, you are not alone. When I was in practice, I thought of a standard of review as being how much deference the appellate court has to give to what the trial court found. Judicial appellate opinions are more uniform in their outcomes when everyone defines and uses standards of review in the same way. Keep in mind that appellate courts are reviewing how the law was applied; they are not tasked with fact-finding.

When you are writing your standard of review for your brief for this class, find the standard of review for each of your questions. You should look in the mandatory authorities provided and then quote that mandatory authority in your Standard of Review section. This will be short, perhaps only a sentence or two long. You must cite to specifically where you pulled the Standard of Review from.

When you are looking for the standard of review for appellate briefs filed “in the real world,” you may have to go outside of the cases dealing with your particular substantive issue to find the correct standard of review. You will have to be sure you stay within the proper jurisdiction, but it is acceptable if the case from which you pull the standard of review does not address anything to assist in answering the substantive legal issue.

Three of the most common standards of review are:

De novo: Least deferential to trial courts. Used for reviewing legal issues and how the trial court applied the law.

Clearly erroneous: Deferential to trial courts. Usually applied to trial court’s findings of fact.

Abuse of discretion: Most deferential to trial courts. Something had to be really wrong to reverse or vacate the trial court’s decision. Usually applied for procedural issues.

When formatting the standard of review for this case, please use the model at the end of the chapter, where you insert the correct Issue/Question and Standard of Review where indicated in italicized print.

Question Presented

The **Question Presented**, or Issue, tells the reader the legal issue to be answered and incorporates the major relevant facts that must be considered to determine the answer. A Question Presented in a brief differs from a Question Presented in a memo because the QP for your brief will be written in persuasive language that suggests only one correct answer. In all other respects, including how to format, the Question Presented remains the same.

There are two different options to format a Question Presented. You can use the traditional under-does-when/whether-can-when model, or you can use the Deep Issue model proposed by Bryan A. Garner in The Deep Issue: A New Approach to Framing Legal Questions, 5 Scribes J. Leg. Writing 1 (1994-95).

In the traditional model, under the legal rule, you state the legally significant facts and the legal question as one sentence. If you use a whether/can/when structure you will punctuate the sentence with a period rather than a question mark.

In the Deep Issue model, you are not constrained by one sentence. Id. at 4, 6. Instead, with a Deep Issue, you write three separate sentences: one that states the legally significant facts, one that states the legal rule, and one that states the legal question. Id. Your

fact sentence or your rule sentence will go first depending on what is the more effective arrangement. *Id.* Your final question with the legal question will go last and it will end with a question mark. *Id.* Each Deep Issue should be no more than 75 words. *Id.* at 5.

Keep in mind that when drafting Questions Presented for advocacy documents, you should frame the question in a way that strongly suggests only one acceptable answer. Depending on which side you are writing for, you will choose to emphasize certain facts over others. Below are two Questions Presented concerning application of the Alien Tort Statute, 28 U.S.C. § 1350, one from each side, in Doe v. Nestlé, S.A., 929 F.3d 623 (9th Cir. 2019), *cert. granted*, 141 S. Ct. 188 (2020), *consolidated with* Cargill, Inc. v. Doe I, 141 S. Ct. 184 (2020), *cert. granted sub nom. Nestlé USA, Inc. v. Doe I*, 141 S. Ct. 188 (2020), (No. 19-416).

Nestlé USA, Inc. filed for a writ of certiorari to the United States Supreme Court and stated its Questions Presented as:

1. Whether an aiding and abetting claim against a domestic corporation brought under the Alien Tort Statute, 28 U.S.C. § 1350, may overcome the extra-territoriality bar where the claim is based on allegations of general corporate activity in the United States and where plaintiffs cannot trace the alleged harms, which occurred abroad at the hands of unidentified foreign actors, to that activity.
2. Whether the Judiciary has the authority under the Alien Tort Statute to impose liability on domestic corporations.

Petition for Writ of Certiorari, in Doe v. Nestlé, S.A., 929 F.3d 623 (9th Cir. 2019), *cert. granted*, 141 S. Ct. 188 (2020), *consolidated with* Cargill, Inc. v. Doe I, 141 S. Ct. 184 (2020), *cert. granted sub nom. Nestlé USA, Inc. v. Doe I*, 141 S. Ct. 188 (2020), (No. 19-416).

John Doe I, et al. in their response brief stated its version of the Questions Presented as:

1. Whether a claim against a domestic corporation brought under the Alien Tort Statute, 28 U.S.C. § 1350, may overcome the extraterritoriality bar where the claim is based on violations of international law by aiding and abetting slavery and forced labor from the United States.
2. Whether domestic corporations are excepted from liability under the Alien Tort Statute despite the lack of an explicit exception in the statute.

Petition in Opposition, in Doe v. Nestlé, S.A., 929 F.3d 623 (9th Cir. 2019), *cert. granted*, 141 S. Ct. 188 (2020), *consolidated with* Cargill, Inc. v. Doe I, 141 S. Ct. 184 (2020), *cert. granted sub nom. Nestlé USA, Inc. v. Doe I*, 141 S. Ct. 188 (2020), (No. 19-416).

Both of these sets of Questions Presented are valid for the issue in the case, but each side chose vastly different facts on which to focus.

When you are writing your brief, plan to write a first draft of each Question Presented after you have completed your research and before you have written your Argument. By using this order, you will be testing your understanding of the legal question and helping you determine the organization of the Argument. However, after you have written the Argument you should then revisit your Question Presented and confirm that it still accurately reflects how you wrote your Argument. Your Questions Presented must be in the order as you present your legal arguments in the Argument section.

You should also periodically revisit the question in the Notice of Appeal or posed by the court to make sure you are actually answering the question directly. Sometimes, your research and opinions can cause you to stray from the task on which you are supposed to write. It is critical that you answer the question as directly as possible; avoid giving answers that relate to the question but do not answer it head-on.

In the example at the end of the chapter, I show you one question presented using each model. However, when you write your brief, you should select one model to use.

Statement of Facts

Statement of Facts in a brief differs from Statement of Facts in a memorandum because you will use the tools discussed in the Persuasive Writing chapter to frame facts as an advocate rather than as an advisor. The organization of and what should be included in the Statement of Facts remains the same.

Your Statement of Facts section is where you tell the reader four main types of facts. First, you state the parties and their relationship both to one another and also to the legal question. You will also include the legally significant facts to know to answer

the legal questions, the key background facts to understand the entire picture, and the procedural facts that tell what actions, if any, have been taken in this current situation (the case at hand).

The first paragraph of the Statement of Facts should serve as a context paragraph, identifying the parties and establishing their relationship to each other and to the legal question. The reader needs a clear understanding of the players involved in order to understand why the facts being shared are relevant and to whom they matter. The remaining paragraphs should tell a story using the legally significant facts and key background facts. The facts should be presented persuasively, using the various techniques we have discussed, while still remaining accurate and truthful. Even though you are serving in an advocacy role when writing this brief, it is still part of your duty to accurately present information.

The Statement of Facts can be organized either chronologically or topically. As the writer, it is up to you to arrange the facts in a manner that makes the most sense for the reader to understand why the facts matter and how they fit into answering the legal question. What this arrangement will look like varies from legal question to legal question. Use your best judgment and think about what organization you, as a reader, would want to see. Also consider what order will make for the best presentation for your side of the legal issue.

Do not write the Statement of Facts in the order in which you encounter the information in your provided materials. Rarely will a client give you the facts in a usable order. Likewise, the assignments that you receive during your legal writing classes also anticipate that you will use your judgment to rearrange the facts in a manner that best fits with the legal question.

The final paragraph should give the procedural history, consisting of the actions that have thus far been taken in the current situation, including whether a lawsuit has been filed, if opposing counsel has given any deadlines for a response, or if there are any statutes of limitations that are about to run.

Finally, be sure that you only write facts in your Statement of Facts; it is not the place to argue, to draw legal conclusions, or to editorialize. A fact statement for an appellate brief uses persuasive writing techniques to highlight the facts that support your position and minimize the unhelpful facts. However, it still must present all the information, and must not stray into argument. The Argument section of your brief will provide you ample opportunity to present legal analysis and draw conclusions.

Plan to write your first draft of Statement of Facts after you have written your first draft of your Question Presented and after you have created an outline of your Argument but before you write your Argument. By writing your Statement of Facts before you write the entirety of your Argument, you ensure that you have a solid grasp on what the facts are in this situation, which is key for providing effective legal advocacy. After you have written your full Argument, you should then read back through your Statement of Facts to confirm that you have included all legally significant and key background facts that you used in your Argument and that your organization of the facts matches with your Argument organization in a way that will make the information most accessible and persuasive to the reader.

Summary of Argument

The **Summary of Argument** section of your brief provides an overview of what the reader should expect in the Argument and Citation of Authority. State the legal issues that must be addressed and highlight the legal analysis steps you took to reach your conclusion. Use the same organizational structure that you use in your Argument and Citation of Authority. Do not cite to any sources of law or to the record. This should be a quick read that primes the reader to digest your Argument. Typically, you will draft one paragraph per issue.

Draft your Summary of Argument after you have completed your Argument and Citation of Authority section and after you have made all substantive edits on that section. The Summary of Argument serves as an overall roadmap to your Argument and Citation of Authority, so you want to make sure that you create a roadmap that matches what you have actually done.

Point Headings

Point headings are conclusions for each of the legal arguments you make in your Argument and Citation of Authority that provide an outline of why your side should prevail to the reader. Point headings serve as clear markers to show the reader, step-by-step, where the argument is going.

You can have major point headings and minor point headings. A major point heading is like a Brief Answer to a Question Presented in a memorandum. Any minor point headings show the steps that had to be taken to reach the major point heading. Minor point

headings are not always necessary, so do not try to force them into your argument.

Each point heading should be written as a sentence that clearly states the relief being sought, the law that applies, and the key facts that determine the outcome. Prefer using verbs and active voice when constructing your point headings. Focus on the legal argument and not on the other side; an affirmative statement of your position is usually better than a negative statement of why the other side is wrong. Do not use point headings to issue personal attacks.

Because your point headings serve as an outline to your Argument, you should be certain that each point heading is easy to read and understand. Point headings that are garbled or unclear will detract from, rather than enhance, your Argument.

Your point headings will be used within your Argument, but I have listed them separately to ensure that you focus on how they can be used effectively in your brief. An example of Point Headings formatting can be found at the end of the chapter.

Argument and Citation of Authority

Argument and Citation of Authority is the place in your brief where you show the legal analysis that supports your conclusions about why your side should prevail on each legal issue that has been identified by your Questions Presented. The Argument uses the CREAC analytical structure to show the reader what steps to take to understand your position, and the Argument uses persuasive tools to sway your reader that your side is correct.

C - Persuasive conclusion, where you state why the court should find for your side

R - Persuasive rule, where the rule is phrased favorably for your client but you are still accurately stating the law

E/A - Explanation/Application [*when using persuasive authority*]

E - past mandatory cases showing how the law has been used before

A - current situation using fact-matching through analogy and distinction

[E - positive persuasive authority from other jurisdictions with similar policy goals as mandatory jurisdiction]

A - current situation using policy-matching through analogy

E - negative persuasive authority from other jurisdictions with different policy goals as mandatory jurisdiction

A - current situation using policy-matching through distinction]

C - narrowed conclusion reminding the reader why your side should prevail using the rule given and connecting the specifics from the E/A that show how the rule applied to the current situation works

When using persuasive authority in your brief, you will end up using an E-A/E-A/E-A format. For the brief you write for this class, you will be using persuasive authority. However, not all briefs written in practice will require or even benefit from looking at persuasive authority.

Within your CREAC-block, your policy arguments from persuasive authority will go into your E and A sections. In the E sections, you will use cases from other jurisdictions to show how particular policy considerations in those jurisdictions led to particular outcomes. Then, in the A sections, you will show how the outcomes in those cases, relying on policy considerations, can inform the court in your current situation what the right outcome should be.

When you want the court to use a particular persuasive authority to come to an outcome you like, you should show how the policy considerations in that case are similar to policy considerations in the mandatory authorities by demonstrating how the policies in both value similar things. This showing of similarity will mean that you can use the positive persuasive authority to inform the outcome in the current situation because the policies match. Then you link the mandatory authority to your current situation to ask for your desired outcome.

When you do not want the court to use a particular persuasive authority to come to an outcome because you do not like that outcome, you should show how the policy considerations in that case are inapplicable to the mandatory authorities by demonstrating the policy considerations are different and therefore do not value similar things. This showing of inapplicability will mean that you cannot use the negative persuasive authority to inform the outcome in the current situation because the policies do not match. Then, you state the policy considerations in the mandatory authority that do reach the outcome you desire.

The bulk of your writing time will be spent crafting, drafting, and refining the Argument section. I recommend creating an outline of your Argument after you have written your first draft of your Question Presented. Once the outline feels complete, then write the Statement of Facts. After you have your first draft of your Statement of Facts, return to your Argument outline and write a complete first draft of your Argument section.

Conclusion

Your **Conclusion** section of your brief summarizes the relief you seek that will benefit your side. The Conclusion will be shorter than both your Argument and Citation of Authority and Summary of Argument sections.

Write this section once you have completed all the other sections of the brief. You might not be certain how your Conclusion should look until after you have thought through the rest of the sections. However, be careful that you do not rush the Conclusion drafting process. Ending on a strong note with a well-crafted Conclusion enhances a brief, while rushing to tie everything together leaves a sour note in the reader's mind.

Closing and Signature Block

The **Closing** section of your brief is short and contains a sentence where you ask the court to grant the relief you seek, the date on which the brief is filed, and your signature block. The signature block should contain your blind grading number (as a stand-in for your eventual bar number), the office address (225 Herty Drive, Athens, Georgia 30602), phone number (706 555-5555), fax number (706 555-5556, and email address (name@email.com). These requirements for what information should go into your signature block come from Georgia Uniform Superior Court Rule 4.2.

Template Components

Title Page

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1.19: Assessing Your Own Work

An important yet difficult step in the writing process is to assess your own work. Once you have gone through the grueling process of getting words on paper, the last thing you might feel like doing is returning to your work to see how you can improve it. However, revision and editing are essential to producing quality work prior to your submitting the document.

You might be asking yourself, “Is there a difference between revising and editing?” YES! **Revision** is the process of examining your writing and its substance as a whole to investigate whether pieces are missing or need to be added and whether the organization is optimal to present your information. **Editing** is the process of reading through your work to correct typos, grammar and punctuation mistakes, awkward phrasing, poor word choice, and citation errors. Many of you have edited your written work countless times, but most people do not engage in a robust revision process. You should revise your work before you edit; if your argument is not presented in a logical order, a mechanically flawless product will not achieve your goals of effectively informing or persuading your reader.

Prior to assessing your work, there is one thing that is essential for you to do before you begin. You *must* take time to be physically and temporally removed from your written work. When taking this break, you are clearing out your short-term memory of what you *intended* to write so that when you return to your document you can read more objectively what it is you actually have written. The longer you can give yourself, the better. I recommend students take twenty-four hours away from a complete draft before sitting down to self-assess your work. Ideally, you will also study other subjects, read a book for pleasure, exercise, sleep, or a myriad of other things that replace your most recent memories of your writing with a beneficial veil of haze and blur.

Additionally, plan your time so that you can revise and then edit during several shorter periods rather than one long marathon session. While assessing your work, you want your mind to be fresh rather than frazzled. Planning several assessment sessions also allows you to divide your different revision and editing tasks at natural stopping points. You should plan to do several read-throughs of your paper with a clearly defined goal for each read-through.

Decide how you want to conduct each read-through, including whether you will print out a paper copy to mark up, read it on the screen, or have a screen-reader read the words to you. There are benefits to each method, and certain methods work better for certain types of read-throughs. For most steps, I prefer having a hard copy in hand to annotate in the margins, highlight particular portions, and flip through from one section to the next. Generally, revision steps involve looking at your written document from the paragraph level and up; editing steps involve looking at the words and sentences within the paragraphs. The below list in what order I recommend you complete your assessment steps.

1. Revision

- a. Examine your large-scale organization
 - i. Identify the main point of the written document and confirm that this main point addresses the topic.
 - ii. Identify the roadmap you have provided to your reader.
 - iii. Identify each piece of the analysis or argument.
 1. Mark where each CREAC-block begins and ends.
 2. Within each block, mark each individual section as to whether it is: (C), (R), (E), (A), or (C).
 3. Consider using colors to mark each section so that you can quickly see where sections might need to move.
 - iv. Identify the conclusion to your analysis or argument.
 - v. Identify other portions of the document that are required by the assignment or rules (e.g., Statement of Facts, Question Presented, Table of Contents).
- b. Look at your written document. In looking at your annotations concerning what each part is, can you determine anything is missing that will need to be added? Can you determine anything that detracts from the main point and should be removed? Can you see anything that needs to be rearranged to have a better flow of your analysis or argument? Make a note of what to add, remove, and rearrange.
- c. Go back to your analysis or argument

- i. Confirm that your legal rule uses key legal words from your research.
 - ii. Identify the number and types of sources you have used
 - iii. Determine whether you have used mandatory authority where it is required.
 - iv. Determine whether you have used persuasive authority where it is appropriate and you have properly identified that authority as non-binding.
 - v. Determine whether you have sufficient sources in your E to show that you have fully researched this topic. If there are few sources to use in your E, have you clearly stated that for the reader?
 - vi. Determine whether you have sufficient application of the sources in your E to show how the reader should apply the sources in E to the facts of the current situation, if you are examining a particular set of facts.
 - vii. To check for analogies and distinctions, circle specific facts from prior cases and circle your comparison words such as “like” and “in contrast to.”
- d. Read the topic sentence of each paragraph and then reread the main point of your document. Confirm the outline that emerges from your topic sentences supports the main point of your document and is complete. Also confirm that it lines up with the roadmap you have provided for the reader. If you notice you have holes or need to rephrase, make a note of that to return to later.

2. Editing

- a. Return to the portions you marked as needing to have pieces added, removed, or rearranged. Excise the superfluous material and then patch the holes made by that excision with transition words or sentences. Add sections where needed and integrate the new section with transition words or sentences. Rearrange sections and use transition words and sentences as appropriate to maintain the flow of your writing.
- b. Return to the topic sentences that needed to be clarified and rewrite them to be strong, declarative statements that guide the reader.
- c. Check the formatting of your document against the requirements given.
 - i. Confirm that the correct font type and size is used
 - ii. Check that document meets page limits or word count requirements
 - iii. Make sure margins and line spacing are correct and consistent
 - iv. Check that the formatting in the header and footer matches the body formatting, unless the assignment has specified they be different
- d. Read each sentence and confirm that each sentence that should have a citation does have a citation.
- e. Check citations to confirm you have used the proper long or short form citation and that you have included pincites where appropriate. Ensure that each citation is correctly formatted according to the Bluebook or other required citation guide.
- f. Read through the document for correct grammar and punctuation. If either of these areas is a weak point for you, then do one readthrough for each grammar and punctuation.
- g. Read through the document for typos. Using a screen reader for this step can be particularly beneficial because the computer will read the word you have typed and not the word you meant, like “statue” instead of “statute”. You should also change your spell check settings to check on words in all caps so you avoid things like BREIF ANSWER.
- h. Finally, once you think you have everything fixed, read your paper out loud to yourself in a mirror, and read it backwards, starting with the final paragraph and working your way to the initial paragraph. This will allow you to check the sentence structure and word choice of each paragraph.

This assessment checklist is thorough and it might even feel daunting. For smaller written products, like email, you might only use a few of these assessment tips. However, for longer works, you should use as many of these steps as possible to ensure you produce cohesive and coherent written work.

After you have submitted your work, you might be tempted never to look at the document again. The reader will decide how valuable the document was and you will move forward. However, you should consider building in time after a document is returned to you or has been used by its audience to assess your work in light of the feedback that you receive. If it is a graded assignment, read the comments from the professor and then see how you would implement those comments to make changes. Meet with the professor and ask them for further feedback. If your document was used by a judge who then issued an order, look at the order and look at your document to see if there are similarities. Did the judge use your fact presentation or your argument? These can be signs that your writing was particularly informative or persuasive.

By engaging in self-assessment after you have submitted your work, you are seeing what worked, what did not, and what you should consider changing the next time. These steps are critical to self-regulated learning; remember, when you are an attorney, you will not have a professor telling you how to develop as a writer and you will need to be able to drive forward your own learning.

Books to Consult for Grammar, Punctuation, and Style

Jeff Anderson, [Mechanically Inclined: Building Grammar, Usage, and Style into Writer's Workshop](#) (2005).

Deborah Cupples & Margaret Temple-Smith, [Grammar, Punctuation & Style: A Quick Guide for lawyers and Other Writers](#) (2013).

Bryan A. Garner, [The Winning Brief: 100 Tips for Persuasive Briefing in Trial and Appellate Courts](#) (3d. ed. 2014).

Bryan A. Garner, [Legal Writing in Plain English: A Text with Exercises](#) (2d. ed. 2013).

Bryan A. Garner, [The Redbook: A Manual on Legal Style](#) (3d. ed. 2013).

Ross Guberman, [Point Made: How to Write Like the Nation's Top Advocates](#) (2d. ed. 2014).

Sandra J. Oster, [Writing Shorter Legal Documents: Strategies for Faster and Better Editing](#) (2011).

Joseph M. Williams, [Style: Ten Lessons in Clarity and Grace](#) (7th ed. 2003).

Richard C. Wydick, [Plain English for Lawyers](#) (5th ed. 2005).

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1.20: Conducting Peer Review

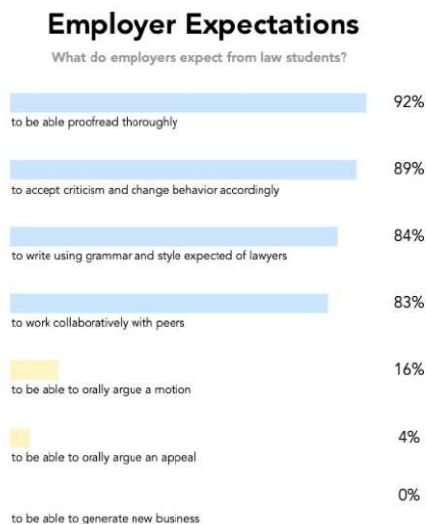
Peer review, or peer editing, is the process in which you and your peers exchange documents and provide feedback on those documents for what the author executed well in the paper and also how the author can improve the document.

Benefits of Peer Review

Peer review provides several benefits for you as a student, including:

1. Seeing how peers draft their documents and seeing that there is not only one right way to go about drafting
2. Being placed in the role of the reader to see how organization and style affect the readability of the document
3. Learning to work with others on both providing and receiving meaningful and respectful feedback
4. Practicing providing effective feedback that provides solutions to the peer
5. Taking in feedback from peers, including evaluating whether to implement the feedback received
6. Engaging in a type of feedback that is different from, but no less valuable than, receiving written feedback from a professor
7. Transferring the process of providing peers feedback to providing yourself feedback

Employers also expect that you will have mastered several of these skills as you enter internships. Alexa Chew and Katie Rose Guest Pryal, Bridging the Gap between Law School and Law Practice (January 1, 2015), Available at SSRN: <https://ssrn.com/abstract=2575185>, surveyed legal employers about nineteen types of skills that employers expected law students to have when they entered the office setting. Employers' responses, reported as percentage who agreed with students having a particular skill, showed they expected law students to be able proofread thoroughly (92%), accept criticism and change behavior accordingly (89%), write using grammar and style expected of lawyers (84%), and work collaboratively with peers (83%). Id. at 7. Conversely, at the bottom of the list were being able to orally argue a motion (16%), being able to orally argue an appeal (4%), and being able to generate new business (0%). Id. at 8.



How to Conduct Peer Review

When conducting a peer review, remember that you are not a copy-editor, a close friend, or a competitor. Rather, you are expected to act as a neutral observer who is trained in legal writing and who is providing specific and practical ideas on what works and what needs more development within the document.

We will use a modified version of the peer review model from Alexa Z. Chew and Katie Rose Guest Pryal, The Complete Legal Writer, 409-12 (2016), that calls for the peer editor to read through the document three times. The editor looks for specified items during each read-through and reserves judgment until the final read-through.

First Read-Through: React and Notate

In the first read-through, you will be reacting to the words on the paper. Ask yourself: What is easy to follow or hard to follow? What parts flow smoothly and what parts cause you to stumble or stop when reading? At this point, do not write any lengthy comments on the paper. You should, however, make notations on the page.

Peer Review Reader Reaction Notations

!! Passages with which you agree strongly

? Passages that don't seem to connect with paper

✓ Passages that are particularly effective

w/c When a word does not fit

awk When a sentence or phrase does not read smoothly

You can choose to use other types of notations, but you should be sure to provide a key for your author to interpret your notations. The purpose of this first read-through is to interact with the paper for the first time, observe how the language and organization strikes you, and then to provide quick feedback.

Second Read-Through: Reverse Outline

In the second read-through, you should create a reverse outline of the author's work in the margins. A reverse outline is the product of the process of taking a finished piece of writing and showing the author how the reader sees the organization of the document. For instance, if you are reading an analytical section of a memo, locate the conclusion, the rule, the explanation, the application, and the wrap-up conclusion (CREAC). However, if you are reading a letter, then you would label the address, the salutation, the introductory piece, each body paragraph's main point, the closing, and the signature line. As you do this second read-through, you might see missing parts that are necessary for the document to be complete. Do not yet try to correct what is missing. You are still reacting to and observing how the document has been put together.

Third Read-Through: Problem-Solve

In your third read-through, you should finally explain why you had the reactions and observations that you did in the first and second read-throughs. Why did you have to read certain passages multiple times? Do not just tell the author that you had difficulty reading the passage. Provide a solution to the issue. Were the sentences too long? Were there typos that distracted? Was the content confusing, and if so, in what way? Do the same thing to discuss what surprised you about certain passages and what made certain passages particularly effective.

Optional Read-Through: Proofreading

This optional read-through is what most people initially think peer review involves: you correct typos, punctuation issues, spacing mishaps, and grammatical errors. While this type of feedback is beneficial, a proofreading re-through is best for when the substantive content is complete and the writer is prepared to submit the written document. Correcting comma placement is not helpful if the writer really needs to focus on shoring up their explanation about why a particular point of law should be interpreted in the way in which they argue it should be.

If you are reviewing a peer's work online, you should still use this same three read-through method. Use the feature in your word processor such as "track changes" in Microsoft Word or "add comment" in Google Docs to make the notations recommended in the first read-through. You can use that same feature for your second read-through, or you can color-code each section. Be sure to include a key indicating what each color means to which the writer can refer. For the third read-through, you can put your comments at the end of the reviewed document, in a separate document that you share, or in the body of an email when you return the document with your annotations from the first and second read-throughs.

As you finalize your feedback, make sure you have shared with the author what worked, what did not, and how to fix what did not work. When giving feedback, you should recognize the strengths of the document and not just point out its weaknesses. You can always find a strong point in any document, and when you are providing feedback it is essential that you discuss what went well in a paper.

Keep in mind that the purpose of engaging in peer review is not to cut the author down or to prove your superiority. Rather, peer review is a cooperative learning exercise that allows both you and your peers to learn how to write and how to edit. Approaching this exercise with the proper mindset is essential to allow each participant to benefit.

When deciding how to give feedback, plan to tell the author: 1) what worked well; 2) where and how the writing went wrong; and 3) how to solve the issues presented. To be effective at peer review, it is essential that you provide solutions or recommendations on how to resolve weaknesses in the document. Merely pointing out mistakes and issues will not help the writer nearly as much to improve the quality of their subsequent drafts.

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1.21: Writing for Exams

Jean Mangan, Courtney Hogan, and Thomas Kadri

There are different strategies that you will use when writing an essay for an exam in law school or for the bar. Many law school exams consist of short answers, essays on directed topics, and “issue-spotters.” In law school, issue-spotters are exams featuring a long hypothetical—usually referred to as a fact pattern—in which there are several potential claims, defenses, and/or other scenarios to be analyzed under the rules you have learned in the course. When you are responding to an issue-spotter question, your goal is to demonstrate to the reader (usually your professor) that you both know the legal rules and understand how to apply them to a given set of facts. Depending on the particular fact pattern and prompt, you might also need to tell the reader every possible way a situation could resolve, often by applying the same rule and showing how your conclusion might change depending on how you interpret different facts. This ability to explore the legal issues in depth demonstrates your mastery of the rules and their nuances. Remember, your law professors assume you can regurgitate the rules, but they really want to see that you know how to *apply* the rules.

First, pay careful attention to the “call of the question” or prompt—what the professor has asked you to explain about the fact pattern. Many questions will not have a “right” answer as to whether a certain claim will succeed or fail, so the best practice is typically to explain both sides of the argument then commit to what you believe to be the stronger conclusion (e.g.: “The judge is likely to grant the motion for summary judgment in this case.”), *unless* instructions indicate otherwise or additional facts are necessary to make a reasonable conclusion. To maximize the points you earn, show the professor the steps you took to reach your conclusions by using the traditional IRAC structure for issue-spotter answers. Exams are designed for you to demonstrate to your professor that you can both find and articulate the legal Issue; identify the relevant Rule(s); conduct the appropriate Analysis or application, including the consideration of counterarguments; and clearly state the Conclusion. Put another way, for each section of your exam answer, you want to tell the professor what that particular section discusses; what past sources of law tell us about this issue; explain how this rule applies to the scenario and why the rule leads to a certain outcome; and then summarize for the reader the purpose of the section by restating your conclusion.

The primary benefits to sticking to an IRAC format are that (1) you present your thoughts in a logical sequence; (2) you are more likely to include all the components needed to show your thought process; and (3) your professor will be able to read your answers easily. All three of these benefits combine to create yet another benefit: you enhance your credibility with the reader.

When you begin reading an issue-spotter question, I suggest going ahead and writing

I
R
A
C

down the page. As you come across an issue, write it next to the I. You will repeat IRAC down the page for each issue you have.

An “issue” is a possible legal question—whether claim or defense—raised by a fact pattern and prompt. Although many fact patterns are quite long, every word has been carefully selected and warrants your full attention. To borrow another professor’s metaphor, think of issue-spotting as a pinball game: the fact pattern is riddled with issues, and you gain more points for each issue you find and discuss. To ensure you catch as many issues as possible, read the fact pattern carefully and multiple times, marking up the page as much as possible. Analyze every word and keep an eye out for important relationships between parties, as well as specific indications of the parties’ thoughts or actions that could suggest their mindset or explain their conduct. Do not add facts to the problem or make broad assumptions about facts given. If more facts are necessary, explain their necessity in your analysis. In short, active reading is your best friend in a law school exam.

For example, say you encounter the following prompt on your Torts exam:

Early one Sunday morning, Arthur went over to Henry’s house to ask to borrow some eggs. When Arthur knocked on the door, Henry threw open the door, striking Arthur in the face and giving him a bloody nose. Henry sticks his head out, sees Arthur with blood streaming down his face, and laughs. Arthur screams, “I’m going to go after you for everything you’ve got!” Henry slams the door in his face. Can Arthur sue Henry for his bloody nose?

Sample Exam Answer

I - Can A sue H for bloody nose under a theory of battery?

R - Battery occurs when a defendant (1) acts (2) intending to cause contact that is (3) harmful or offensive; and (4) harmful or offensive contact results. The contact does not have to be directly from a part of the defendant's body; it is enough that the defendant intentionally uses an object to cause a harmful or offensive contact with the plaintiff such that the contact can be attributed to the defendant.

A - Here, we know that Henry caused a harmful contact to Arthur by swinging the door open and striking Arthur in the face and injuring his nose, which means that three elements of a battery claim are satisfied. What remains to be determined is whether Henry intended for the door to strike Arthur in the nose. On the one hand, the fact that Henry stuck his head out and laughed afterwards might suggest that Henry meant to strike Arthur with the door; in that case, Henry would be liable for battery. On the other hand, if Henry did not mean to strike Arthur and was actually laughing about something else, then Henry would not have had the intent to strike Arthur, and Henry could not be found liable for battery.

C - Henry's liability for battery will depend on whether Arthur can prove Henry intended to open the door in a way that would strike Arthur.

(You could then use the same format to explore whether Arthur can sue Henry under a theory of negligence.)

Notice how stating the issue helps you recall the appropriate rules. Once you have stated the rule, you then go through and connect a fact from the prompt to each piece of the rule. Where an important fact is unknown or ambiguous, like whether Henry had the requisite intent, that tells you to show how the facts could be interpreted to allow for either outcome. Then, you bring it all together by answering the question posed in I with the likely conclusion or the specific fact or portion of the rule that the outcome turns on.

As you are studying for your exams, practice putting your answers to practice problems in the IRAC format when you write out your responses. You should always try to answer the problems on your own before you read the sample answer! Having to recall the information and put it in your own words will help make the material stick in your long-term memory, which is better both for your exam-taking and for learning the material thoroughly.

Conclusion

Using the IRAC format to answer your exam questions presents information in a way that legal readers are used to and prefer, ensures that you have addressed all components needed, and makes your paper easier to read.

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